

SENATE/HOUSE FILE _____
BY (PROPOSED DEPARTMENT OF
INSPECTIONS, APPEALS, AND
LICENSING BILL)

A BILL FOR

1 An Act relating to the practice of licensed professions
2 and the duties of the professional licensing boards,
3 including applications, renewals, and fees, and including
4 applicability provisions.

5 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. Section 89.9, Code 2026, is amended to read as
2 follows:

3 **89.9 Disposal of fees.**

4 All fees provided for in this chapter shall be collected
5 by the director and ~~remitted to the treasurer of state, to~~
6 ~~be~~ deposited in the licensing and regulation fund created in
7 section 10A.507, together with an itemized statement showing
8 the source of collection.

9 Sec. 2. Section 89.14, subsections 4 and 8, Code 2026, are
10 amended to read as follows:

11 4. The members of the board shall select a chairperson, vice
12 chairperson, and secretary from their membership. However,
13 neither the director nor the director's designee shall serve
14 as chairperson. The board shall meet at least quarterly but
15 may meet as often as necessary. Meetings shall be set by a
16 majority of the board or upon the call of the chairperson,
17 or in the chairperson's absence, upon the call of the vice
18 chairperson. A majority of the board members who are currently
19 serving shall constitute a quorum.

20 8. The ~~board~~ department shall establish fees for
21 examinations, inspections, annual statements, shop inspections,
22 and other services. The fees shall reflect the actual costs
23 and expenses necessary to operate the board and perform the
24 duties of the director.

25 Sec. 3. Section 89A.3, subsection 2, paragraph i, Code 2026,
26 is amended by striking the paragraph.

27 Sec. 4. Section 89A.13, subsection 4, Code 2026, is amended
28 to read as follows:

29 4. The members of the safety board shall select a
30 chairperson, vice chairperson, and a secretary from their
31 membership. However, neither the director nor the director's
32 designee shall serve as chairperson. The safety board shall
33 meet at least quarterly but may meet as often as necessary.
34 Meetings shall be set by a majority of the safety board or upon
35 the call of the chairperson, or in the chairperson's absence,

1 upon the call of the vice chairperson. A majority of the
2 safety board members who are currently serving shall constitute
3 a quorum.

4 Sec. 5. Section 89A.19, Code 2026, is amended to read as
5 follows:

6 **89A.19 Fees.**

7 1. The department shall set fees to be charged and collected
8 for inspections, permits, and commissions.

9 2. All fees collected by the director pursuant to this
10 chapter shall be ~~remitted to the treasurer of state, to be~~
11 deposited in the licensing and regulation fund created in
12 section 10A.507.

13 Sec. 6. Section 103.1, subsection 1, Code 2026, is amended
14 to read as follows:

15 1. "*Apprentice electrician*" means any person who, as such
16 person's principal occupation, is engaged in learning and
17 assisting in the installation, alteration, and repair of
18 electrical wiring, apparatus, and equipment as an employee
19 of a person licensed under this chapter, and who is licensed
20 by the board and is progressing toward completion of an
21 apprenticeship training program registered by the Iowa office
22 of apprenticeship or the office of apprenticeship of the United
23 States department of labor. For purposes of this chapter,
24 persons who are not engaged in the installation, alteration, or
25 repair of electrical wiring, apparatus, and equipment, either
26 inside or outside buildings, shall not be considered apprentice
27 electricians.

28 Sec. 7. Section 103.2, subsection 3, paragraph b, Code 2026,
29 is amended to read as follows:

30 b. Meetings shall be called as needed by the chairperson
31 or four members of the board. At any meeting of the board, a
32 majority of board members who are currently serving constitutes
33 a quorum.

34 Sec. 8. Section 103.5, Code 2026, is amended by striking the
35 section and inserting in lieu thereof the following:

1 **103.5 Form of license.**

2 A license under this chapter shall be issued in the form of
3 a certificate under the seal of the department and signed by
4 the director.

5 Sec. 9. Section 103.6, subsection 1, paragraph d, Code 2026,
6 is amended by striking the paragraph.

7 Sec. 10. Section 103.7, Code 2026, is amended to read as
8 follows:

9 **103.7 Fees.**

10 1. The department shall set fees to be charged and collected
11 for inspection and other services.

12 2. All licensing, examination, renewal, and inspection fees
13 under this chapter shall be deposited in the licensing and
14 regulation fund created in section 10A.507.

15 Sec. 11. Section 103.10A, Code 2026, is amended to read as
16 follows:

17 **103.10A Inactive master electrician license.**

18 The board may by rule create an inactive master electrician
19 license and the department may establish a fee for such a
20 license. An applicant for an inactive master electrician
21 license shall, at a minimum, meet the requirements of this
22 chapter and requirements established by the board by rule
23 for licensure as a class A master electrician or a class
24 B master electrician. A person licensed as an inactive
25 master electrician shall not be authorized to act as a master
26 electrician, but shall be authorized to apply for a class A
27 master electrician license or a class B master electrician
28 license at a future date subject to conditions and under
29 procedures established by the board by rule. The conditions
30 and procedures shall include but not be limited to completion
31 of the required number of contact hours of continuing education
32 courses specified in section 103.18, and paying the applicable
33 license fee specified in section 103.19 for a class A master
34 electrician license or class B master electrician license.

35 Sec. 12. Section 103.15, subsection 1, Code 2026, is amended

1 to read as follows:

2 1. A person shall be licensed by the board and pay a
3 licensing fee to work as an apprentice electrician while
4 participating in an apprenticeship training program registered
5 by the Iowa office of apprenticeship or the office of
6 apprenticeship of the United States department of labor in
7 accordance with the standards established by that department
8 office. An apprenticeship shall be limited to six years from
9 the date of licensure, unless extended by the board upon a
10 finding that a hardship existed which prevented completion of
11 the apprenticeship program. Such licensure shall entitle the
12 licensee to act as an apprentice to an electrical contractor,
13 a class A master electrician, a class B master electrician,
14 a class A journeyman electrician, or a class B journeyman
15 electrician as provided in subsection 3.

16 Sec. 13. Section 103.18, Code 2026, is amended to read as
17 follows:

18 **103.18 License renewal — continuing education.**

19 In order to renew a class A master electrician license, class
20 B master electrician license, class A journeyman electrician
21 license, or class B journeyman electrician license issued
22 pursuant to this chapter, the licensee shall be required to
23 complete eighteen contact hours of continuing education courses
24 approved by the board during the ~~three-year~~ period for which a
25 license is granted. The contact hours shall include a minimum
26 of six contact hours studying the national electrical code
27 described in section 103.6, and the remaining contact hours may
28 include study of electrical circuit theory, blueprint reading,
29 transformer and motor theory, electrical circuits and devices,
30 control systems, programmable controllers, and microcomputers
31 or any other study of electrical-related material that is
32 approved by the board. Any additional hours studying the
33 national electrical code shall be acceptable. For purposes of
34 this section, "contact hour" means fifty minutes of classroom
35 attendance at an approved course under a qualified instructor

1 approved by the board.

2 Sec. 14. Section 103.19, Code 2026, is amended to read as
3 follows:

4 **103.19 Licenses — expiration — application — fees.**

5 1. Licenses issued pursuant to this chapter shall
6 ~~expire every three years, with the exception of licenses for~~
7 ~~apprentice electricians and unclassified persons, which shall~~
8 ~~expire on an annual basis~~ as determined by the department by
9 rule. All license applications shall include the applicant's
10 social security number, which shall be maintained as a
11 confidential record and shall be redacted prior to public
12 release of an application or other record containing such
13 social security number. The ~~board~~ department shall establish
14 the fees to be payable for license issuance, reactivation,
15 reinstatement, and renewal ~~in amounts not to exceed the~~
16 ~~following:~~

17 ~~a. For each year of the three-year license period for~~
18 ~~issuance and renewal:~~

19 ~~{1} Electrical contractor, one hundred twenty-five dollars.~~

20 ~~{2} Class A master electrician, class B master electrician,~~
21 ~~residential master electrician, one hundred twenty-five~~
22 ~~dollars.~~

23 ~~{3} Class A journeyman electrician, class B journeyman~~
24 ~~electrician, residential electrician, or special electrician,~~
25 ~~twenty-five dollars.~~

26 ~~b. For apprentice electricians or unclassified persons,~~
27 ~~twenty dollars.~~

28 2. The holder of an expired license may renew the license
29 ~~for during a period of three months from the date of expiration~~
30 determined by the department by rule upon payment of the
31 license fee plus ~~ten percent of the renewal fee for each month~~
32 ~~or portion thereof past the expiration date~~ a penalty as
33 determined by the department by rule. All holders of licenses
34 expired for more than three months shall apply for a new
35 license.

1 ~~3. If the board determines that all licenses shall expire~~
2 ~~on the same date every three years for licenses specified in~~
3 ~~subsection 1, paragraph "a", the license fees shall be prorated~~
4 ~~by month. The board shall determine an individual's license~~
5 ~~fee based on the number of months that the individual's license~~
6 ~~will be in effect after being issued and prior to expiration~~
7 A licensee whose license has been revoked, suspended,
8 or voluntarily surrendered must apply for and receive
9 reinstatement of the license, as provided by the board by rule,
10 prior to practicing a profession licensed under this chapter.

11 Sec. 15. Section 103.23, subsection 3, Code 2026, is amended
12 to read as follows:

13 3. All new electrical installations for single-family
14 residential applications ~~requiring new electrical service~~
15 ~~equipment.~~

16 Sec. 16. Section 103.25, Code 2026, is amended to read as
17 follows:

18 **103.25 Request for inspection — fees.**

19 1. At or before commencement of any installation required
20 to be inspected by the board, the licensee or property owner
21 making such installation shall submit to the department a
22 request for inspection. The board department shall prescribe
23 by rule the methods by which the request may be submitted,
24 ~~which may include electronic submission or through a form~~
25 ~~prescribed by the board that can be submitted either through~~
26 ~~the mail or by a fax transmission. The board shall also~~
27 ~~prescribe methods by which inspection fees can be paid, which~~
28 ~~may include electronic methods of payment and the manner in~~
29 which fees may be paid. If the board or the department becomes
30 aware that a person has failed to file a necessary request for
31 inspection, the board shall send a written notification by
32 certified mail that the request must be filed within fourteen
33 days. Any person filing a late request for inspection shall
34 pay a delinquency fee in an amount to be determined by the
35 board department. A person who fails to file a late request

1 within fourteen days from receipt of the notification shall be
2 subject to a civil penalty to be determined by the board by
3 rule.

4 2. Notwithstanding subsection 1, the board may by rule
5 provide for the issuance of a single permit to a licensee
6 to request multiple inspections. The permit authorizes the
7 licensee to perform new electrical installations specified in
8 the permit. The ~~board~~ department shall prescribe the methods
9 by which the request for multiple inspections may be submitted,
10 ~~which may include electronic submission or through a form~~
11 ~~prescribed by the board that can be submitted either through~~
12 ~~the mail or by a fax transmission~~ and the manner in which fees
13 may be paid. The board shall also prescribe methods by which
14 inspection fees can be paid, which may include electronic
15 methods of payment. The board may perform inspections of
16 each new electrical installation or any portion of the total
17 number of new electrical installations made under each permit.
18 The ~~board~~ department shall establish fees for such permits,
19 which shall not exceed the total inspection fees that would be
20 required if each new electrical installation performed under
21 the request for multiple inspections had been performed under
22 individual requests for inspections as provided in subsection
23 1.

24 Sec. 17. Section 103.31, subsection 6, Code 2026, is amended
25 to read as follows:

26 6. The board shall establish an internet-based licensure
27 verification database for access by a state or local inspector
28 for verification of licensee status. The database shall
29 include the name of every person licensed under this chapter
30 and a corresponding licensure number. ~~However, the licensee's~~
31 ~~home address, home telephone number, and other personal~~
32 ~~information as determined by rule shall be confidential.~~
33 Inspectors shall be authorized to request the name and
34 license number of any person working at a job site subject to
35 inspection for verification of licensee status. Licensees

1 under this chapter shall be required to carry a copy of their
2 current license and photo identification at all times when
3 employed on a job site for compliance with this subsection.

4 Sec. 18. Section 103.32, subsection 1, Code 2026, is amended
5 to read as follows:

6 1. All state electrical inspection fees shall be due and
7 payable to the ~~board~~ department at or before commencement of
8 the installation and shall be forwarded with the request for
9 inspection. Inspection fees provided in this section shall
10 not apply within the jurisdiction of any political subdivision
11 if the political subdivision has adopted an ordinance or
12 resolution pursuant to this chapter.

13 Sec. 19. Section 103.32, subsection 2, unnumbered paragraph
14 1, Code 2026, is amended to read as follows:

15 The ~~board~~ department shall establish the fees for
16 inspections in amounts not to exceed:

17 Sec. 20. Section 103.34, subsection 1, Code 2026, is amended
18 to read as follows:

19 1. Upon receipt of a notice of appeal filed pursuant to
20 section 103.33, the ~~chairperson~~ director or administrative
21 staff of the ~~board~~ department may designate a hearing officer
22 from among the board members, or an administrative law judge
23 employed by the department, to hear the appeal or may set the
24 matter for hearing before the full board at its next scheduled
25 meeting. A majority of the board shall make the decision.

26 Sec. 21. Section 105.2, subsection 1, Code 2026, is amended
27 to read as follows:

28 1. "*Apprentice*" means any person, other than a helper,
29 journeyperson, or master, who, as a principal occupation, is
30 engaged in working as an employee of a plumbing, mechanical,
31 HVAC-refrigeration, sheet metal, or hydronic systems contractor
32 under the supervision of either a master or a journeyperson and
33 is progressing toward completion of an apprenticeship training
34 program registered by the Iowa office of apprenticeship or the
35 office of apprenticeship of the United States department of

1 labor while learning and assisting in the design, installation,
2 and repair of plumbing, HVAC, refrigeration, sheet metal, or
3 hydronic systems, as applicable.

4 Sec. 22. Section 105.3, subsection 2, paragraph a,
5 subparagraphs (1) and (2), Code 2026, are amended by striking
6 the subparagraphs.

7 Sec. 23. Section 105.3, subsection 5, Code 2026, is amended
8 to read as follows:

9 5. The board shall organize annually and shall select a
10 chairperson and a secretary from its membership. A quorum
11 shall consist of a majority of the board members ~~of the board~~
12 who are currently serving.

13 Sec. 24. Section 105.5, subsection 1, Code 2026, is amended
14 to read as follows:

15 1. Any person desiring to take an examination for a license
16 issued pursuant to this chapter shall make application to
17 the board in accordance with the rules of the board. ~~The~~
18 ~~application form shall be no longer than two pages in length,~~
19 ~~plus one security page. The board may require that a recent~~
20 ~~photograph of the applicant be attached to the application.~~

21 Sec. 25. Section 105.9, subsections 1 and 2, Code 2026, are
22 amended to read as follows:

23 1. The ~~board~~ department shall set the fees for the
24 examination of all applicants, ~~by rule, which fees shall be~~
25 ~~based upon the cost of administering the examinations.~~

26 2. The ~~board~~ department shall set the license fees and
27 renewal fees for all licenses issued pursuant to this chapter,
28 by rule.

29 Sec. 26. Section 105.9, subsections 5, 6, and 7, Code 2026,
30 are amended by striking the subsections.

31 Sec. 27. Section 105.15, Code 2026, is amended to read as
32 follows:

33 **105.15 Registry of licenses.**

34 The name, location, license number, and date of issuance
35 of the license of each person to whom a license has been

1 issued shall be entered in a registry kept in the office
2 of the department to be known as the plumbing, mechanical,
3 HVAC-refrigeration, sheet metal, or hydronic registry. The
4 registry may be electronic and shall be open to public
5 inspection. ~~However, the licensee's home address, home~~
6 ~~telephone number, and other personal information as determined~~
7 ~~by rule shall be confidential.~~

8 Sec. 28. Section 105.16, Code 2026, is amended to read as
9 follows:

10 **105.16 Change of residence.**

11 If a person licensed to practice as a contractor or a
12 plumbing, mechanical, HVAC-refrigeration, sheet metal, or
13 hydronic professional under this chapter changes the person's
14 residence or place of practice, the person shall ~~so~~ notify the
15 board department.

16 Sec. 29. Section 105.18, subsection 2, paragraph a,
17 subparagraph (3), Code 2026, is amended to read as follows:

18 (3) Be enrolled in an applicable apprentice program which is
19 registered with the United States department of labor office of
20 apprenticeship or the Iowa office of apprenticeship.

21 Sec. 30. Section 105.18, subsection 2, paragraph b,
22 subparagraph (1), subparagraph divisions (a) and (c), Code
23 2026, are amended to read as follows:

24 (a) File an application and pay application fees as
25 established by the board department, which application shall
26 establish that the person meets the minimum educational and
27 experience requirements adopted by the board.

28 (c) Provide the board with evidence of having completed
29 at least four years of practical experience as an apprentice.
30 Commencing January 1, ~~2010~~ 2027, the four years of practical
31 experience required by this subparagraph division must be
32 an apprenticeship training program registered by the ~~United~~
33 ~~States department of labor~~ Iowa workforce development office
34 of apprenticeship.

35 Sec. 31. Section 105.18, subsection 2, paragraph c,

1 subparagraph (1), subparagraph division (a), Code 2026, is
2 amended to read as follows:

3 (a) File an application and pay application fees as
4 established by the ~~board~~ department, which application shall
5 establish that the person meets the minimum educational and
6 experience requirements adopted by the board.

7 Sec. 32. Section 105.18, subsection 2, paragraph d,
8 subparagraph (1), Code 2026, is amended to read as follows:

9 (1) File an application and pay application fees as
10 established by the ~~board~~ department and establish that the
11 person meets the minimum requirements adopted by the board.
12 ~~Through June 30, 2017, the application shall include the~~
13 ~~person's state contractor registration number. After July~~
14 ~~1, 2017, the~~ The application shall include proof of workers
15 compensation insurance coverage, proof of unemployment
16 insurance compliance, and, for out-of-state contractors, a bond
17 as described in chapter 91C.

18 Sec. 33. Section 105.18, subsection 3, paragraph c, Code
19 2026, is amended to read as follows:

20 c. The ~~board shall~~ department may establish a special,
21 restricted license fee at a reduced rate, consistent with any
22 other special, restricted license fees.

23 Sec. 34. Section 105.20, Code 2026, is amended to read as
24 follows:

25 **105.20 Renewal and reinstatement of licenses — fees and**
26 **penalties — continuing education.**

27 1. All licenses issued under this chapter shall be issued
28 for a ~~three-year~~ period as determined by the department by
29 rule.

30 2. A license issued under this chapter may be renewed
31 as provided by rule adopted by the ~~board~~ department upon
32 application by the licensee, without examination. Applications
33 for renewal shall be made to the ~~board~~ department, accompanied
34 by the required renewal licensing fee, ~~at least thirty days~~
35 ~~prior to the expiration date of the license and submitted~~

1 during a period as determined by the department by rule.

2 ~~3. Failure to renew a license within a reasonable time after~~
3 ~~the expiration of the license shall not invalidate the license,~~
4 ~~but a reasonable penalty may be assessed as adopted by rule,~~
5 ~~in addition to the license renewal fee, to allow reinstatement~~
6 ~~of the license~~ A licensee may renew an inactive or lapsed
7 license by submitting a reactivation fee and completing other
8 requirements as determined by the board by rule.

9 4. The board shall, by rule, establish a reinstatement
10 process for a licensee who allows a license to lapse, including
11 reasonable penalties as determined by the department by rule.

12 5. a. The basic continuing education requirement for
13 renewal of a license shall be the completion, during the
14 immediately preceding license term, of the number of classroom
15 hours of instruction required by the board in courses or
16 seminars which have been approved by the board. The board
17 shall require at least eight classroom hours of instruction
18 during each three-year licensing term.

19 b. A licensee shall have a ~~thirty-day~~ grace period, as
20 determined by the department by rule, after expiration of the
21 licensing term to complete all requirements necessary for
22 license renewal without penalty.

23 6. A licensee whose license has been revoked, suspended,
24 or voluntarily surrendered must apply for and receive
25 reinstatement of the license, as provided by the board by rule,
26 prior to practicing a profession licensed under this chapter.

27 Sec. 35. Section 147.1, subsections 3 and 6, Code 2026, are
28 amended to read as follows:

29 3. "*Licensed*" or "*certified*", when applied to a physician
30 and surgeon, podiatric physician, osteopathic physician and
31 surgeon, genetic counselor, physician assistant, psychologist,
32 chiropractor, nurse, dentist, dental hygienist, dental
33 assistant, optometrist, speech pathologist, audiologist,
34 pharmacist, physical therapist, physical therapist assistant,
35 occupational therapist, occupational therapy assistant,

1 orthotist, prosthetist, pedorthist, respiratory care
2 practitioner, practitioner of cosmetology arts and sciences,
3 practitioner of barbering, funeral director, dietitian,
4 behavior analyst, assistant behavior analyst, marital and
5 family therapist, mental health counselor, midwife, respiratory
6 care and polysomnography practitioner, polysomnographic
7 technologist, social worker, massage therapist, athletic
8 trainer, acupuncturist, nursing home administrator, hearing aid
9 specialist, ~~or~~ sign language interpreter or transliterator,
10 accountant, architect, engineer or land surveyor, real estate
11 broker, real estate salesperson, real estate appraiser,
12 landscape architect, or interior designer means a person
13 licensed under this subtitle.

14 6. "*Profession*" means medicine and surgery, podiatry,
15 osteopathic medicine and surgery, genetic counseling, practice
16 as a physician assistant, psychology, chiropractic, nursing,
17 dentistry, dental hygiene, dental assisting, optometry, speech
18 pathology, audiology, pharmacy, physical therapy, physical
19 therapist assisting, occupational therapy, occupational therapy
20 assisting, respiratory care, cosmetology arts and sciences,
21 barbering, mortuary science, applied behavior analysis, marital
22 and family therapy, mental health counseling, midwifery,
23 polysomnography, social work, dietetics, massage therapy,
24 athletic training, acupuncture, nursing home administration,
25 practice as a hearing aid specialist, sign language
26 interpreting or transliterating, orthotics, prosthetics, ~~or~~
27 pedorthics, accountancy, architecture, engineering and land
28 surveying, real estate, real estate brokerage, real estate
29 sale, real estate appraisal, landscape architecture, or
30 interior design.

31 Sec. 36. Section 147.2, Code 2026, is amended to read as
32 follows:

33 **147.2 License required.**

34 1. A person shall not engage in the practice of medicine
35 and surgery, podiatry, osteopathic medicine and surgery,

1 genetic counseling, psychology, chiropractic, physical
 2 therapy, physical therapist assisting, nursing, dentistry,
 3 dental hygiene, dental assisting, optometry, speech pathology,
 4 audiology, occupational therapy, occupational therapy
 5 assisting, orthotics, prosthetics, pedorthics, respiratory
 6 care, pharmacy, cosmetology arts and sciences, barbering,
 7 social work, dietetics, applied behavior analysis, marital
 8 and family therapy or mental health counseling, massage
 9 therapy, mortuary science, polysomnography, athletic training,
 10 acupuncture, nursing home administration, or sign language
 11 interpreting or transliterating, or shall not practice as a
 12 physician assistant, or a hearing aid specialist, accountant,
 13 architect, engineer or land surveyor, real estate broker, real
 14 estate salesperson, real estate appraiser, landscape architect,
 15 or interior designer unless the person, or entity employing the
 16 person, if applicable, has obtained a license for that purpose
 17 from the board for the profession or the department.

18 2. For purposes of this section, a person who is licensed
 19 in another state and recognized for licensure in this state
 20 pursuant to ~~the nurse~~ a licensure compact contained in section
 21 ~~152E.1 or pursuant to the advanced practice registered nurse~~
 22 ~~compact contained in section 152E.3~~ which issues a multistate
 23 license or authorization to practice shall be considered to
 24 have obtained a license to practice ~~nursing~~ the profession.

25 Sec. 37. Section 147.3, Code 2026, is amended to read as
 26 follows:

27 **147.3 Qualifications.**

28 An applicant for a license to practice a profession under
 29 this subtitle is not ineligible because of age, ~~citizenship,~~
 30 sex, race, religion, marital status, or national origin,
 31 ~~although the application form may require citizenship~~
 32 ~~information.~~

33 Sec. 38. Section 147.5, Code 2026, is amended to read as
 34 follows:

35 **147.5 Certificate of license.**

1 1. Every license to practice a profession shall be in
2 the form of a certificate ~~under the seal of the board. Such~~
3 ~~license shall be issued in the name of the board~~ issued by the
4 department.

5 2. This section shall not apply to a person who is licensed
6 in another state and recognized for licensure in this state
7 pursuant to ~~the nurse a~~ licensure compact contained in section
8 ~~152E.1 or pursuant to the advanced practice registered nurse~~
9 ~~compact contained in section 152E.3~~ which issues a multistate
10 license or authorization to practice.

11 Sec. 39. Section 147.7, subsection 2, Code 2026, is amended
12 to read as follows:

13 2. This section shall not apply to a person who is licensed
14 in another state and recognized for licensure in this state
15 pursuant to ~~the nurse a~~ licensure compact contained in section
16 ~~152E.1 or pursuant to the advanced practice registered nurse~~
17 ~~compact contained in section 152E.3~~ which issues a multistate
18 license or authorization to practice. A person licensed in
19 another state and recognized for licensure in this state
20 pursuant to ~~either a~~ compact shall, however, maintain a copy
21 of a license issued by the person's home state available for
22 inspection when engaged in the practice of nursing the person's
23 profession in this state.

24 Sec. 40. Section 147.8, subsection 2, Code 2026, is amended
25 by striking the subsection.

26 Sec. 41. Section 147.9, Code 2026, is amended to read as
27 follows:

28 **147.9 Change of address.**

29 Every person licensed pursuant to this chapter shall notify
30 ~~the board which issued the license~~ department of a change in
31 the person's address of record within a time period established
32 by ~~board~~ the department by rule.

33 Sec. 42. Section 147.10, Code 2026, is amended to read as
34 follows:

35 **147.10 Renewal.**

1 1. Every license to practice a profession shall expire
2 in multiyear intervals and be renewed upon application of
3 the licensee as determined by the board upon application
4 ~~by the licensee department~~. ~~Each board~~ A renewal interval
5 for a license shall not exceed five years. The department
6 shall establish rules for license renewal and concomitant
7 fees. Application for renewal shall be ~~made to the board~~
8 accompanied by the required fee at least thirty days prior to
9 the expiration of such license.

10 2. ~~Each board~~ The department may by rule establish a grace
11 period following expiration of a license in which the license
12 is not invalidated. ~~Each board~~ The department may assess a
13 reasonable penalty for renewal of a license during the grace
14 period. Failure of a licensee to renew a license within the
15 grace period shall cause the license to become inactive or
16 lapsed. A licensee whose license is inactive or lapsed shall
17 not engage in the practice of the profession until the license
18 is reactivated or reinstated.

19 Sec. 43. Section 147.11, subsection 1, Code 2026, is amended
20 to read as follows:

21 1. A licensee who allows the license to become inactive
22 or lapsed by failing to renew the license, as provided in
23 section 147.10, may reactivate the license upon payment of a
24 reactivation fee and compliance with other terms established by
25 ~~board~~ the department by rule.

26 Sec. 44. NEW SECTION. **147.11A Temporary license.**

27 1. A board may issue a temporary license authorizing the
28 licensee to practice in a specific location or locations and
29 for a specified period of time if, in the opinion of the board,
30 the person possesses the qualifications prescribed by the board
31 for the license, which shall be substantially equivalent to
32 those required for licensure under this chapter. The board
33 shall determine by rule eligibility requirements for the
34 license and what type of examination shall be given, if any.
35 Requirements relating to regular permanent licensure are not

1 mandatory for a temporary license, except as specifically
2 determined by the board by rule. The granting of a temporary
3 license does not indicate that the person so licensed is
4 eligible for regular licensure.

5 2. A temporary license shall be issued for a period
6 determined by the department by rule but shall not exceed
7 one year. A temporary license may be renewed, but a person
8 shall not practice for more than three years under a temporary
9 license. The department shall set the fees for issuance and
10 renewal of a temporary license by rule.

11 3. Each board may adopt rules for the implementation of this
12 section, including for revocation of a temporary license.

13 Sec. 45. NEW SECTION. 147.11B **Licensure by reciprocity.**

14 A board may grant licensure, registration, or certification
15 by reciprocity. Each board that grants a license,
16 registration, or certification by reciprocity shall adopt rules
17 establishing the documentation that an applicant must furnish
18 in order to establish the applicant's eligibility.

19 Sec. 46. NEW SECTION. 147.11C **Voluntary surrender of**
20 **license.**

21 The director of the department may accept the voluntary
22 surrender of a license if accompanied by a written statement of
23 intention. The voluntary surrender, when accepted, shall have
24 the same force and effect as an order of revocation.

25 Sec. 47. Section 147.13, Code 2026, is amended by adding the
26 following new subsections:

27 NEW SUBSECTION. 21. For accountancy, the Iowa accountancy
28 examining board.

29 NEW SUBSECTION. 22. For architecture, the architectural
30 examining board.

31 NEW SUBSECTION. 23. For engineering and land surveying, the
32 engineering and land surveying examining board.

33 NEW SUBSECTION. 24. For real estate brokers and
34 salespersons, the real estate commission board.

35 NEW SUBSECTION. 25. For real estate appraisers, the real

1 estate appraiser examining board.

2 NEW SUBSECTION. 26. For landscape architecture, and the
3 landscape architectural examining board.

4 NEW SUBSECTION. 27. For registered interior design, the
5 interior design examining board.

6 Sec. 48. Section 147.14, subsection 1, Code 2026, is amended
7 by adding the following new paragraphs:

8 NEW PARAGRAPH. *t.* For accountancy, a total of five members,
9 all of whom must be residents of this state. Four of the five
10 members must be holders of certificates granted under section
11 542.6 and one must not be a certified public accountant or
12 licensed public accountant and must represent the general
13 public. At least three of the holders of certificates issued
14 under section 542.6 must also be qualified to supervise attest
15 services as provided in section 542.7.

16 NEW PARAGRAPH. *u.* For architecture, a total of five
17 members, four of whom are licensed to practice architecture and
18 one of whom is not a licensed architect and who represents the
19 general public.

20 NEW PARAGRAPH. *v.* For engineering and land surveying,
21 three members who are licensed professional engineers, two
22 members who are licensed professional land surveyors, and
23 two members who are not licensed professional engineers or
24 licensed professional land surveyors and who shall represent
25 the general public. A licensed member must be actively engaged
26 in the practice of engineering or land surveying and been so
27 engaged for five consecutive years immediately preceding the
28 appointment, the last two years of which shall have been in
29 Iowa. Insofar as practicable, licensed engineer members of
30 the board shall be from different branches of the profession
31 of engineering.

32 NEW PARAGRAPH. *w.* For real estate brokers and salespersons,
33 four members who are licensed brokers or salespersons and one
34 member not licensed to practice real estate who shall represent
35 the general public. A member shall not hold any other elective

1 or appointive state or federal office. At least one licensed
2 member shall be a licensed real estate salesperson, except that
3 if the licensed real estate salesperson becomes a licensed real
4 estate broker during a term of office, that person may complete
5 the term, but is not eligible for reappointment as a licensed
6 real estate salesperson. A licensed member must be actively
7 engaged in real estate business.

8 NEW PARAGRAPH. x. For real estate appraisers, five members,
9 one of whom must be a public member and four of whom must be
10 certified real estate appraisers. A certified member must
11 be actively engaged in practice as a certified real estate
12 appraiser. Insofar as practicable, certified real estate
13 appraiser members should represent each class of certified
14 appraisers.

15 NEW PARAGRAPH. y. For landscape architecture, five members
16 who are professional landscape architects and two members
17 who are not professional landscape architects and who shall
18 represent the general public. Four of the five professional
19 members must be actively engaged in the practice of landscape
20 architecture or the teaching of landscape architecture in
21 an accredited college or university, and must have been so
22 engaged for five years preceding appointment, the last two of
23 which shall have been in Iowa. One of the five professional
24 members must be actively engaged in the practice of landscape
25 architecture or the teaching of landscape architecture in an
26 accredited college or university for a minimum of one year
27 immediately preceding appointment.

28 NEW PARAGRAPH. z. For interior design, a total of seven
29 members, five members who are registered interior designers and
30 who have been in the active practice of registered interior
31 design for not less than five years, the last two years of
32 which shall have been in Iowa, and two members who are not
33 registered interior designers and who shall represent the
34 general public.

35 Sec. 49. Section 147.14, subsection 2, Code 2026, is amended

1 to read as follows:

2 2. A majority of the board members ~~of a board~~ who are
3 currently serving constitutes a quorum.

4 Sec. 50. Section 147.25, subsection 2, Code 2026, is amended
5 to read as follows:

6 2. In addition to any other fee provided by law, a fee may
7 be set by the ~~respective boards~~ department for each license
8 and renewal of a license to practice a profession, which fee
9 shall be based on the annual cost of collecting information
10 for use by the board in the administration of the system of
11 health personnel statistics established by this section. The
12 fee shall be retained ~~by the respective board~~ in the manner in
13 which license and renewal fees are retained in section 147.82.

14 Sec. 51. Section 147.44, Code 2026, is amended to read as
15 follows:

16 **147.44 Reciprocal agreements.**

17 A board may enter into a reciprocal agreement with a
18 licensing authority of another state for the purpose of
19 recognizing licenses issued by the other state, provided
20 that such licensing authority imposes licensure requirements
21 substantially equivalent to those imposed in this state. The
22 board may establish by rule the conditions for the recognition
23 of such licenses and the department may establish by rule the
24 process for licensing such individuals to practice in this
25 state.

26 Sec. 52. NEW SECTION. **147.57 Voluntary agreements.**

27 A board, after due notice and hearing, may issue an order to
28 revoke, suspend, or restrict a license to practice a licensed
29 profession, or to issue a restricted license on application if
30 the board determines that a licensee or applicant has entered
31 into a voluntary agreement to restrict the practice of the
32 licensed profession in another state, district, territory,
33 country, or agency of the federal government. A certified copy
34 of the voluntary agreement shall be considered prima facie
35 evidence.

1 Sec. 53. Section 147.73, subsection 2, Code 2026, is amended
2 to read as follows:

3 2. As prohibiting any holder of a degree conferred by an
4 institution of learning accredited by the appropriate board
5 created in this chapter, or by ~~some~~ a recognized state or
6 national accrediting agency, from using the title which such
7 degree authorizes the holder to use, but the holder shall not
8 use such degree or abbreviation in any manner which might
9 mislead the public as to the holder's qualifications ~~to treat~~
10 ~~human ailments.~~

11 Sec. 54. Section 147.74, Code 2026, is amended by adding the
12 following new subsections:

13 NEW SUBSECTION. 29. For the profession of accountancy,
14 a person or firm licensed under chapter 542 may use the
15 designations described in section 542.13.

16 NEW SUBSECTION. 30. An architect licensed under chapter
17 544A may use the words "architect", "licensed architect", or
18 "architectural designer" after the person's name.

19 NEW SUBSECTION. 31. A person licensed to engage in the
20 practice of engineering under chapter 542B may use the words
21 "professional engineer" or "licensed engineer" after the
22 person's name. A person licensed to engage in the practice
23 of land surveying under chapter 542B may use the words
24 "professional land surveyor" or "licensed land surveyor" after
25 the person's name.

26 NEW SUBSECTION. 32. A real estate broker licensed under
27 chapter 543B may use the words "real estate broker" after
28 the person's name. A real estate salesperson licensed under
29 chapter 543B may use the words "real estate salesperson" after
30 the person's name.

31 NEW SUBSECTION. 33. A person holding a certificate to
32 engage in the practice of real estate appraisals under chapter
33 543D may use the words "certified real estate appraiser" after
34 the person's name. A person holding a registration to engage
35 in the practice of real estate appraisals as an associate

1 under chapter 543D may use the words "associate real estate
2 appraiser" after the person's name.

3 NEW SUBSECTION. 34. A person licensed to engage in the
4 practice of landscape architecture under chapter 544B may
5 use the words "landscape architect", "professional landscape
6 architect", or "landscape architecture designer" after the
7 person's name.

8 NEW SUBSECTION. 35. A person who has been issued a
9 certificate of registration under chapter 544C may use the
10 words "registered interior designer" or any other title or
11 device indicating that the person is a registered interior
12 designer after the person's name.

13 Sec. 55. Section 147.76, Code 2026, is amended to read as
14 follows:

15 **147.76 Rules.**

16 The boards for the various professions shall adopt all
17 necessary ~~and proper~~ rules to administer and interpret this
18 chapter and chapters 148 through 157, except chapter 148D,
19 chapter 272C, and chapters 542 through 544C.

20 Sec. 56. Section 147.80, subsection 1, unnumbered paragraph
21 1, Code 2026, is amended to read as follows:

22 ~~Each board, following approval by the~~ The department, ~~may,~~
23 ~~or at the direction of the department,~~ shall, by rule establish
24 or revise fees for the following:

25 Sec. 57. Section 147.80, subsection 2, Code 2026, is amended
26 to read as follows:

27 2. The department shall annually prepare estimates of
28 projected revenues to be generated by all fees collected
29 as well as a projection of the aggregate administrative
30 costs and rental expenses attributable to all boards and the
31 division of the department responsible for licensing related
32 to such boards. The department shall annually review and, if
33 necessary, ~~direct the boards to~~ adjust the schedule of fees to
34 cover aggregate projected expenses and ensure fees imposed in
35 this state are not greater than similar fees imposed by similar

1 boards or agencies in other states. ~~The department shall~~
2 ~~annually provide to each appropriate board a comparison of the~~
3 ~~amount of the board's fees as compared to similar fees imposed~~
4 ~~by similar boards or agencies in other states.~~

5 Sec. 58. Section 147.82, Code 2026, is amended to read as
6 follows:

7 **147.82 Disposition of fees.**

8 All fees collected by ~~a board listed in section 147.13 or by~~
9 the department, and fees collected pursuant to sections 124.301
10 and 147.80 and chapter 155A by the board of pharmacy, shall
11 be deposited in the licensing and regulation fund created in
12 section 10A.507.

13 Sec. 59. Section 147.86, Code 2026, is amended to read as
14 follows:

15 **147.86 Penalties.**

16 1. Any person violating any provision of this subtitle,
17 except insofar as the provisions apply or relate to or affect
18 the practice of pharmacy, or where a specific penalty is
19 otherwise provided, shall be guilty of a serious misdemeanor.

20 2. When it appears to a board that a person has violated a
21 provision of this subtitle, the board may certify the facts to
22 the attorney general or the county attorney of the county where
23 the person maintains a business office.

24 3. If, after an investigation, a board has reason to believe
25 that a person has knowingly engaged in an act or practice that
26 constitutes a violation of this subtitle, the board may submit
27 the information to the attorney general of any state, or other
28 appropriate law enforcement official, who, in such official's
29 discretion, may initiate an appropriate criminal proceeding.

30 4. Evidence of the commission of a single act prohibited
31 by this subtitle, chapters 148 through 157, chapter 272C, or
32 chapters 542 through 544C is sufficient to justify a penalty,
33 injunction, restraining order, or conviction, without evidence
34 of a general course of conduct.

35 Sec. 60. Section 147.87, subsection 2, Code 2026, is amended

1 to read as follows:

2 2. The department may administratively close a complaint
3 that does not allege a violation of this chapter, the board's
4 enabling statute, or a rule of the board, if the complaint
5 does not allege harm to the public, or if the complaint is
6 referred to another agency or law enforcement. The board may
7 administratively terminate an investigation if the alleged
8 violation of this chapter, the board's enabling statute, or
9 rule of the board is not substantiated or does not merit
10 discipline.

11 Sec. 61. Section 147.88, Code 2026, is amended to read as
12 follows:

13 **147.88 Inspections and investigations.**

14 1. The department may perform inspections and
15 investigations as required by this subtitle.

16 2. The department shall employ personnel pursuant to
17 chapter 8A, subchapter IV, to perform duties related to
18 inspection and investigation functions under this subtitle.
19 The costs and expenses of inspectors and investigators shall be
20 paid from funds appropriated to the department.

21 3. The department may employ clerical assistants pursuant
22 to chapter 8A, subchapter IV, to administer and enforce this
23 subtitle. The costs and expenses of clerical assistants shall
24 be paid from funds appropriated to the department.

25 4. Investigators authorized by a board or the department
26 shall have the powers and status of peace officers when
27 enforcing this subtitle, chapters 148 through 157 except 148D,
28 chapter 272C, and chapters 542 through 544C.

29 5. If an investigation pursuant to this subtitle, chapters
30 148 through 157 except 148D, chapter 272C, or chapters 542
31 through 544C, reveals that an unlicensed person has acted in
32 the capacity of a licensed person or entity, the board or
33 department shall issue a cease and desist order, and may impose
34 a civil penalty not to exceed one thousand dollars.

35 Sec. 62. Section 147.92, Code 2026, is amended to read as

1 follows:

2 **147.92 Attorney general.**

3 Upon request of a board, the attorney general shall
4 institute in the name of the state the proper proceedings
5 against any person charged by the board with violating any
6 provision of ~~this or the following chapters of this subtitle,~~
7 chapters 147 through 157, chapter 272C, or chapters 542 through
8 544C.

9 Sec. 63. Section 148.3, subsections 2 and 3, Code 2026, are
10 amended by striking the subsections.

11 Sec. 64. Section 148.5, Code 2026, is amended to read as
12 follows:

13 **148.5 Resident physician license.**

14 A physician, who is a graduate of a medical school or
15 college of osteopathic medicine and surgery and is serving as a
16 resident physician who is not otherwise licensed to practice
17 medicine and surgery or osteopathic medicine and surgery in
18 this state, shall be required to obtain from the board a
19 license to practice as a resident physician. The license shall
20 be designated "Resident Physician License" and shall authorize
21 the licensee to serve as a resident physician only, under
22 the supervision of a licensed practitioner of medicine and
23 surgery or osteopathic medicine and surgery, in an institution
24 approved for such training by the board. A license shall be
25 valid for a duration as determined by the ~~board~~ department by
26 rule. ~~The fee for each license shall be set by the board to~~
27 ~~cover the administrative costs of issuing the license.~~ The
28 board shall determine in each instance those eligible for a
29 license, whether or not examinations shall be given, and the
30 type of examinations. Requirements of the law pertaining
31 to regular permanent licensure shall not be mandatory for a
32 resident physician license except as specifically designated by
33 the board. The granting of a resident physician license does
34 not in any way indicate that the person licensed is necessarily
35 eligible for regular permanent licensure, or that the board in

1 any way is obligated to license the individual.

2 Sec. 65. Section 148.11, subsection 3, Code 2026, is amended
3 to read as follows:

4 ~~3. The board shall establish a fee for initial issuance and~~
5 ~~renewal of a special license.~~ The board shall establish rules
6 for granting and renewing a special license consistent with
7 those for permanent licenses.

8 Sec. 66. Section 148.11A, subsection 2, Code 2026, is
9 amended to read as follows:

10 2. An application for an administrative medicine license
11 shall be made to the board. An applicant for an administrative
12 medicine license shall meet all of the requirements established
13 in section 148.3 and any additional requirements established by
14 the board by rule. ~~The board shall also adopt rules governing~~
15 ~~the initial issuance and renewal of administrative medicine~~
16 ~~licenses and establishing fees therefor. All license and~~
17 ~~renewal fees shall be paid to the board.~~

18 Sec. 67. Section 148B.2, Code 2026, is amended by adding the
19 following new subsection:

20 NEW SUBSECTION. 1A. "*Department*" means the department of
21 inspections, appeals, and licensing.

22 Sec. 68. Section 148B.4, Code 2026, is amended to read as
23 follows:

24 **148B.4 Limited permit.**

25 1. A limited permit to practice occupational therapy may
26 be granted to a person who has completed the academic and
27 field work requirements for occupational therapists under
28 this chapter and has not yet taken or received the results of
29 the entry-level certification examination. A permit granted
30 pursuant to this subsection shall be valid for a period of
31 time as determined by the ~~board~~ department by rule and shall
32 allow the person to practice occupational therapy under the
33 direction and appropriate supervision of an occupational
34 therapist licensed under this chapter. The permit shall expire
35 when the person is issued a license under section 148B.5 or

1 if the person is notified that the person did not pass the
2 examination. The limited permit shall not be renewed.

3 2. A limited permit to assist in the practice of
4 occupational therapy may be granted to a person who has
5 completed the academic and field work requirements for
6 occupational therapy assistants under this chapter and has
7 not yet taken or received the results of the entry-level
8 certification examination. A permit granted pursuant to this
9 subsection shall be valid for a period of time as determined
10 by the ~~board~~ department by rule and shall allow the person
11 to assist in the practice of occupational therapy under the
12 direction and appropriate supervision of an occupational
13 therapist licensed under this chapter. The permit shall expire
14 when the person is issued a license under section 148B.5 or
15 if the person is notified that the person did not pass the
16 examination. The limited permit shall not be renewed.

17 Sec. 69. Section 148B.5, unnumbered paragraph 1, Code 2026,
18 is amended to read as follows:

19 An applicant applying for a license as an occupational
20 therapist or as an occupational therapy assistant must file a
21 ~~written an application on forms provided~~ in a manner prescribed
22 by the board, showing to the satisfaction of the board that the
23 applicant meets the following requirements:

24 Sec. 70. Section 148B.7, Code 2026, is amended to read as
25 follows:

26 **148B.7 Board of physical and occupational therapy — powers**
27 **and duties.**

28 The board shall adopt rules relating to professional conduct
29 to carry out the policy of this chapter, chapter 147, and
30 chapter 272C, including but not limited to rules relating to
31 professional licensing and ~~to~~ the establishment of ethical
32 standards of practice for persons holding a license to practice
33 occupational therapy in this state.

34 Sec. 71. Section 148C.3, subsection 1, unnumbered paragraph
35 1, Code 2026, is amended to read as follows:

1 The board shall adopt rules to govern the licensure of
2 physician assistants. An applicant for licensure shall submit
3 the fee prescribed by the ~~board~~ department and shall meet the
4 requirements established by the board with respect to each of
5 the following:

6 Sec. 72. Section 148C.3, subsection 4, Code 2026, is amended
7 by striking the subsection.

8 Sec. 73. Section 148E.7, Code 2026, is amended to read as
9 follows:

10 **148E.7 Duties of board.**

11 The board shall adopt rules consistent with this chapter,
12 ~~and chapter 147,~~ and chapter 272C which are necessary for the
13 performance of ~~its~~ the board's duties.

14 Sec. 74. Section 148F.3, subsection 5, Code 2026, is amended
15 by striking the subsection.

16 Sec. 75. Section 148G.1, Code 2026, is amended by adding the
17 following new subsection:

18 NEW SUBSECTION. 1A. "*Department*" means the department of
19 inspections, appeals, and licensing.

20 Sec. 76. Section 148G.6, subsection 1, unnumbered paragraph
21 1, Code 2026, is amended to read as follows:

22 Beginning January 1, 2017, a person seeking licensure as
23 a respiratory care and polysomnography practitioner or as a
24 polysomnographic technologist shall apply to the board and pay
25 the fees established by the ~~board~~ department for the type of
26 license for which the applicant is applying. Beginning with
27 the March 31, 2016, license renewal period, a person licensed
28 as a respiratory care practitioner who seeks a respiratory
29 care and polysomnography practitioner license shall make
30 such application with the application for license renewal
31 and pay the fees established by the ~~board~~ department. ~~The~~
32 ~~fees established by the board for a respiratory care and~~
33 ~~polysomnography practitioner license shall not exceed one~~
34 ~~hundred twenty percent of the cost of a respiratory care~~
35 ~~practitioner license issued pursuant to chapter 152B or a~~

1 ~~polysomnographic technologist license issued pursuant to~~
2 ~~this section.~~ The application for a respiratory care and
3 polysomnography practitioner license must meet the requirements
4 of this section. Upon receipt of an application, the board
5 shall conduct a background check of the applicant. An
6 application for either type of licensure shall show that the
7 applicant is of good moral character and is at least eighteen
8 years of age, and shall include proof that the person has
9 satisfied one of the following educational requirements:

10 Sec. 77. Section 148G.6, subsection 5, Code 2026, is amended
11 by striking the subsection.

12 Sec. 78. Section 148I.2, subsection 2, paragraph e, Code
13 2026, is amended to read as follows:

14 e. Submit an application fee as ~~prescribed by the board by~~
15 rule provided in section 147.80.

16 Sec. 79. Section 148I.4, subsection 1, unnumbered paragraph
17 1, Code 2026, is amended to read as follows:

18 The board shall adopt rules consistent with this chapter,
19 ~~and chapter 147,~~ and chapter 272C which are necessary for the
20 performance of the board's duties. The rules shall do all of
21 the following:

22 Sec. 80. Section 148I.4, subsection 1, paragraph m, Code
23 2026, is amended to read as follows:

24 m. ~~Establish~~ Require an annual license fee as provided in
25 section 147.80.

26 Sec. 81. Section 152.8, subsection 1, Code 2026, is amended
27 to read as follows:

28 1. A license possessed by an applicant from a state
29 which has not adopted the nurse licensure compact contained
30 in section 152E.1 or the advanced practice registered nurse
31 compact contained in section 152E.3 shall be recognized by
32 the board under conditions specified which indicate that the
33 licensee meets all the qualifications required under section
34 152.7. If a foreign license is recognized, the board may issue
35 a reciprocal license ~~by endorsement~~ without an examination

1 being required. Recognition shall be based on whether the
2 foreign licensee is qualified to practice nursing. The board
3 may issue a temporary license to ~~a natural person~~ an individual
4 who has completed the requirements of and applied for licensure
5 ~~by endorsement a reciprocal license~~. The board shall determine
6 the length of time a temporary license shall remain effective.

7 Sec. 82. Section 152B.6, subsection 2, Code 2026, is amended
8 to read as follows:

9 2. The establishment of a system for the licensure of
10 respiratory care practitioners ~~and the establishment and~~
11 ~~collection of licensure fees~~.

12 Sec. 83. Section 152B.12, Code 2026, is amended to read as
13 follows:

14 **152B.12 Suspension and revocation of licenses.**

15 The board may suspend, or revoke ~~or impose probationary~~
16 ~~conditions upon a license issued pursuant to rules adopted in~~
17 ~~accordance with section 152B.6,~~ or decline to renew a license,
18 for a violation of a provision of this chapter, section 147.55,
19 section 272C.10, or rules adopted by the board.

20 Sec. 84. Section 152C.3, subsection 1, paragraph c, Code
21 2026, is amended to read as follows:

22 c. Payment of a reasonable fee ~~required by the board which~~
23 ~~shall compensate and be retained by the board for the costs of~~
24 ~~administering this chapter pursuant to section 147.80.~~

25 Sec. 85. Section 152C.7, Code 2026, is amended to read as
26 follows:

27 **152C.7 Suspension and revocation of licenses.**

28 The board may suspend, or revoke, ~~or impose probationary~~
29 ~~conditions upon a license issued pursuant to rules adopted in~~
30 ~~accordance with section 152C.3~~ decline to renew, a license for
31 a violation of a provision of this chapter, section 147.55,
32 section 272C.10, or rules adopted by the board.

33 Sec. 86. Section 152D.3, subsection 2, Code 2026, is amended
34 to read as follows:

35 2. ~~Application and renewal procedures, fees,~~ Applications

1 and reciprocal agreements shall be ~~provided~~ submitted in
2 accordance with rules adopted by the board pursuant to chapter
3 17A.

4 Sec. 87. Section 152D.5, subsection 1, Code 2026, is amended
5 to read as follows:

6 1. Adopt rules consistent with this chapter, and chapter
7 147, and chapter 272C which are necessary for the performance
8 of ~~its~~ the board's duties.

9 Sec. 88. Section 152D.5, subsection 4, Code 2026, is amended
10 by striking the subsection.

11 Sec. 89. Section 153.12, Code 2026, is amended to read as
12 follows:

13 **153.12 Board and department defined.**

14 As used in this chapter, ~~"board"~~:

15 1. "Board" means the dental board created under chapter 147.

16 2. "Department" means the department of inspections,
17 appeals, and licensing.

18 Sec. 90. Section 153.22, Code 2026, is amended to read as
19 follows:

20 **153.22 Resident license.**

21 A dentist or dental hygienist who is serving only as a
22 resident, intern, or graduate student and who is not licensed
23 to practice in this state is required to obtain from the board
24 a temporary or special license to practice as a resident,
25 intern, or graduate student. The license shall be designated
26 "Resident License" and shall authorize the licensee to serve
27 as a resident, intern, or graduate student only, under the
28 supervision of a licensed practitioner, in an institution
29 approved for this purpose by the board. Such license shall
30 be renewed at the discretion of the board. ~~The fee for a~~
31 ~~resident license and the renewal fee shall be set by the board~~
32 ~~based upon the cost of issuance of the license.~~ The board
33 shall determine in each instance those eligible for a resident
34 license, whether or not examinations shall be given, and the
35 type of examination. None of the requirements for regular

1 permanent licensure are mandatory for resident licensure except
2 as specifically designated by the board. The issuance of a
3 resident license shall not in any way indicate that the person
4 so licensed is necessarily eligible for regular licensure or
5 that the board is obligated to so license the person. The
6 board may revoke a resident license at any time it shall
7 determine either that the caliber of work done by a licensee
8 or the type of supervision being given such licensee does not
9 conform to reasonable standards established by the board.

10 Sec. 91. Section 153.33, subsection 1, paragraph b, Code
11 2026, is amended by striking the paragraph.

12 Sec. 92. Section 153.33, subsection 1, paragraph e, Code
13 2026, is amended to read as follows:

14 e. To ~~promulgate~~ adopt rules as may be necessary to
15 implement the provisions of this chapter, chapter 147, and
16 chapter 272C.

17 Sec. 93. Section 153.33, subsections 3 and 4, Code 2026, are
18 amended by striking the subsections.

19 Sec. 94. Section 153.37, Code 2026, is amended to read as
20 follows:

21 **153.37 Dental college and dental hygiene program faculty**
22 **permits.**

23 The board may issue a faculty permit entitling the holder
24 to practice dentistry or dental hygiene within a college of
25 dentistry or a dental hygiene program and affiliated teaching
26 facilities as an adjunct to the faculty member's teaching
27 position, associated responsibilities, and functions. The dean
28 of the college of dentistry or chairperson of a dental hygiene
29 program shall certify to the board those bona fide members of
30 the college's or a dental hygiene program's faculty who are not
31 licensed and registered to practice dentistry or dental hygiene
32 in Iowa. Any faculty member so certified shall, prior to
33 commencing the member's duties in the college of dentistry or a
34 dental hygiene program, make written application to the board
35 for a permit. The permit ~~shall be for a period determined by~~

1 ~~the board and~~ may be renewed at the discretion of the board.
2 ~~The fee for the faculty permit and the renewal shall be set by~~
3 ~~the board based upon the administrative cost of issuance of~~
4 ~~the permit. The fee shall be deposited in the same manner as~~
5 ~~fees provided for in section 147.82.~~ The faculty permit shall
6 be valid during the time the holder remains a member of the
7 faculty and shall subject the holder to all provisions of this
8 chapter.

9 Sec. 95. Section 154A.13, Code 2026, is amended to read as
10 follows:

11 **154A.13 Temporary permit.**

12 A person who has not been licensed as a hearing aid
13 specialist may obtain a temporary permit from the department
14 upon completion of the application accompanied by the written
15 verification of employment from a licensed hearing aid
16 specialist. The department shall issue a temporary permit
17 ~~for two years which~~ that shall not be renewed or reissued for
18 more than a total of two years. The fee for issuance of the
19 temporary permit shall be set by the department in accordance
20 with the provisions for establishment of fees by boards in
21 section 147.80. The temporary permit entitles an applicant to
22 engage in the fitting or selection and sale of hearing aids
23 under the supervision of a person holding a valid license or an
24 audiologist licensed pursuant to chapter 154F.

25 Sec. 96. Section 154B.6, subsections 3 and 4, Code 2026, are
26 amended to read as follows:

27 3. A person who possesses a doctoral degree in psychology
28 from an institution approved by the board but who has not
29 completed the other requirements for licensure under this
30 section may apply for a provisional license. The license shall
31 be designated as a "provisional license in psychology". The
32 provisional license shall authorize the licensee to practice
33 psychology under the supervision of a supervisor who meets the
34 qualifications determined by the board by rule. A provisional
35 license shall be valid for a period of two years. ~~The fee for~~

1 ~~a provisional license shall be set by the board to cover the~~
2 ~~administrative costs of issuance. The board shall also set a~~
3 ~~fee for renewal of a provisional license.~~

4 4. A person who is enrolled in a doctoral degree program in
5 psychology at an institution approved by the board but who has
6 not completed the other requirements for licensure under this
7 section may apply for a provisional license during the person's
8 internship program. The license shall be designated as a
9 "provisional license in psychology". The provisional license
10 shall authorize the licensee to practice psychology under
11 the supervision of a supervisor who meets the qualifications
12 determined by the board by rule. A provisional license shall
13 be valid for a period of two years. ~~The fee for a provisional~~
14 ~~license shall be set by the board to cover the administrative~~
15 ~~costs of issuance. The board shall also set a fee for renewal~~
16 ~~of a provisional license.~~

17 Sec. 97. Section 154B.13, subsection 1, paragraph a, Code
18 2026, is amended to read as follows:

19 a. Procedures to obtain a conditional prescription
20 certificate, a prescription certificate, and a renewal of
21 a prescription certificate. ~~The board may set reasonable~~
22 ~~application and renewal fees.~~

23 Sec. 98. Section 154C.3, subsection 3, Code 2026, is amended
24 to read as follows:

25 3. *License renewal and continuing education. Licenses*
26 The terms of each license shall be renewed biennially, and
27 licensees determined by the department of inspections, appeals,
28 and licensing by rule. Licensees shall pay a fee for renewal
29 as determined by the board department of inspections, appeals,
30 and licensing and shall present evidence satisfactory to the
31 board that the licensee has satisfied continuing education
32 requirements as determined by the board. The board shall
33 not limit the number of continuing education credits that
34 may be obtained online in satisfying continuing education
35 requirements, provided that any online program ~~providing~~

1 ~~continuing education credits online~~ shall comply with standards
2 set by the board.

3 Sec. 99. Section 154D.7, Code 2026, is amended to read as
4 follows:

5 **154D.7 Temporary license — marital and family therapy —**
6 **mental health counseling — fees.**

7 Any person who has fulfilled all of the requirements for
8 licensure under section 154D.2, except for having completed
9 the postgraduate supervised clinical experience requirement as
10 determined by the board by rule, may apply to the board for a
11 temporary license. The license shall be designated "temporary
12 license in marital and family therapy" or "temporary license in
13 mental health counseling" and shall authorize the licensee to
14 practice marital and family therapy or mental health counseling
15 under the supervision of a qualified supervisor as determined
16 by the board by rule. ~~The license shall be valid for three~~
17 ~~years and may be renewed at the discretion of the board. The~~
18 ~~fee for a temporary license shall be set by the board to~~
19 ~~cover the administrative costs of issuing the license, and if~~
20 ~~renewed, a renewal fee as set by the board shall be required.~~

21 Sec. 100. Section 154D.8, unnumbered paragraph 1, Code
22 2026, is amended to read as follows:

23 An applicant who has been a licensed marital and family
24 therapist or licensed mental health counselor under the laws
25 of another jurisdiction may file an application with the board
26 for licensure by ~~endorsement~~ reciprocity. The board shall
27 adopt rules requiring an applicant for licensure by ~~endorsement~~
28 reciprocity to do all of the following:

29 Sec. 101. Section 154E.2, subsection 1, Code 2026, is
30 amended to read as follows:

31 1. Adopt rules consistent with this chapter, ~~and with~~
32 chapter 147, and chapter 272C which are necessary for the
33 performance of ~~its~~ the board's duties.

34 Sec. 102. Section 154E.3A, Code 2026, is amended to read as
35 follows:

1 **154E.3A Temporary license.**

2 An individual who does not meet the requirements for
3 licensure by examination pursuant to section 154E.3 may apply
4 for or renew a temporary license. The temporary license
5 shall authorize the licensee to practice as a sign language
6 interpreter or transliterator under the direct supervision
7 of a sign language interpreter or transliterator licensed
8 pursuant to section 154E.3. The temporary license shall be
9 valid for ~~two years~~ one year and may ~~only be renewed one time~~
10 ~~in accordance with standards established by rule~~ be renewed at
11 the discretion of the board. An individual shall not practice
12 for more than a total of four years under a temporary license.
13 The board may revoke a temporary license if it determines that
14 the temporary licensee has violated standards established by
15 rule. The board may adopt requirements for temporary licensure
16 to implement this section.

17 Sec. 103. Section 154E.3B, subsection 3, Code 2026, is
18 amended to read as follows:

19 3. The board shall adopt rules pursuant to chapter 17A,
20 and consistent with chapters 147 and 272C, for the process of
21 applying for, granting, suspending, reinstating, renewing, and
22 revoking a license issued pursuant to this section.

23 Sec. 104. Section 154F.5, Code 2026, is amended to read as
24 follows:

25 **154F.5 Temporary clinical license — fee.**

26 Any person who has fulfilled all of the requirements for
27 licensure under this chapter, except for having completed the
28 nine months' clinical experience requirement as provided in
29 section 154F.3, subsection 1 or 2, may apply to the board for a
30 temporary clinical license. The license shall be designated
31 "temporary clinical license in speech pathology" or "temporary
32 clinical license in audiology" and shall authorize the licensee
33 to practice speech pathology or audiology under the supervision
34 of a licensed speech pathologist or licensed audiologist, as
35 appropriate. The license shall be valid for one year and

1 may be renewed at the discretion of the board. ~~The fee for~~
2 ~~a temporary clinical license shall be set by the board to~~
3 ~~cover the administrative costs of issuing the license, and if~~
4 ~~renewed, a renewal fee as set by the board shall be required.~~ A
5 temporary clinical license shall be issued only upon evidence
6 satisfactory to the board that the applicant will be supervised
7 by a person licensed as a speech pathologist or audiologist,
8 as appropriate.

9 Sec. 105. Section 154F.6, Code 2026, is amended to read as
10 follows:

11 **154F.6 Temporary permit.**

12 The board may, at its discretion, issue a temporary permit
13 to a nonresident authorizing the permittee to practice
14 speech pathology or audiology in this state for a period
15 not to exceed three months whenever, in the opinion of the
16 board, a need exists and the permittee, ~~in the opinion of the~~
17 ~~board,~~ possesses the necessary qualifications which shall be
18 substantially equivalent to those required for licensure by
19 this chapter.

20 Sec. 106. Section 155.4, Code 2026, is amended to read as
21 follows:

22 **155.4 Licensing function.**

23 The board shall license nursing home administrators in
24 accordance with this chapter, chapter 147, chapter 272C, and
25 rules issued by the board. A nursing home administrator's
26 license shall not be transferable and, if not inactive,
27 shall be valid until revoked pursuant to section 147.55 or
28 voluntarily surrendered.

29 Sec. 107. Section 155.5, Code 2026, is amended to read as
30 follows:

31 **155.5 License fees.**

32 Each person licensed as a nursing home administrator ~~shall~~
33 ~~be required to~~ must pay a license fee in an amount to be fixed
34 by the ~~board~~ department of inspections, appeals, and licensing.
35 The license shall expire in ~~multiyear~~ intervals determined by

1 the ~~board~~ department of inspections, appeals, and licensing and
2 be renewable upon payment of a renewal fee. ~~A person who fails~~
3 ~~to renew a license by the expiration date shall be allowed to~~
4 ~~do so within thirty days following its expiration, but the~~
5 ~~board may assess a reasonable penalty.~~

6 Sec. 108. Section 155A.3, Code 2026, is amended by adding
7 the following new subsection:

8 NEW SUBSECTION. 10A. "*Department*" means the department of
9 inspections, appeals, and licensing.

10 Sec. 109. Section 155A.7, subsections 1 and 2, Code 2026,
11 are amended to read as follows:

12 1. Registration programs for pharmacist-interns, pharmacy
13 technicians, and pharmacy support persons are established for
14 the purposes of identification, tracking, and disciplinary
15 action for the violation of federal drug laws or regulations,
16 state drug or pharmacy laws, or rules of the board and
17 department.

18 2. A person who is or desires to be a pharmacist-intern,
19 pharmacy technician, or pharmacy support person in this state
20 shall apply ~~to the board~~ for registration on a form prescribed
21 by the ~~board~~ department.

22 a. A pharmacist-intern shall be registered during internship
23 training and thereafter pursuant to rules adopted by the board.

24 b. An applicant for a new pharmacy technician registration
25 or for a pharmacy technician renewal shall provide proof of
26 current certification by a national technician certification
27 authority approved by the board. A person who is in the
28 process of acquiring national certification as a pharmacy
29 technician and who is in training to become a pharmacy
30 technician shall register ~~with the board~~ as a pharmacy
31 technician.

32 Sec. 110. Section 155A.7, subsection 3, unnumbered
33 paragraph 1, Code 2026, is amended to read as follows:

34 The board shall adopt rules pursuant to chapter 17A on
35 matters pertaining to pharmacist-intern, pharmacy technician,

1 and pharmacy support person ~~registration, renewals, fees,~~
2 training, national certification for pharmacy technicians,
3 approval of preceptors for pharmacist-interns, and other
4 relevant matters. The department shall adopt rules pursuant to
5 chapter 17A related to registration, renewal, and fees.

6 Sec. 111. Section 155A.8, subsection 4, Code 2026, is
7 amended to read as follows:

8 4. The ~~board~~ department shall specify by rule procedures
9 and fees to renew a pharmacist license and penalties for late
10 renewal or failure to renew a pharmacist license.

11 Sec. 112. Section 155A.13, subsection 2, Code 2026, is
12 amended to read as follows:

13 2. The ~~board~~ department shall specify by rule the licensing
14 procedures to be followed, including specifications of forms
15 for use in applying for a pharmacy license and fees for filing
16 an application.

17 Sec. 113. Section 155A.13, subsection 6, unnumbered
18 paragraph 1, Code 2026, is amended to read as follows:

19 To qualify for a pharmacy license, the applicant shall
20 submit to the board a license fee as determined by the ~~board~~
21 department and a completed application on a form prescribed
22 by the ~~board~~ department. The application shall include the
23 following and such other information as required by rules ~~of~~
24 adopted by the board department and shall be given under oath:

25 Sec. 114. Section 155A.13A, subsection 1, unnumbered
26 paragraph 1, Code 2026, is amended to read as follows:

27 A pharmacy located outside of this state that delivers,
28 dispenses, or distributes by any method, prescription drugs
29 or devices to an ultimate user in this state shall obtain
30 a nonresident pharmacy license from the board. The ~~board~~
31 department shall make available an application form for a
32 nonresident pharmacy license and shall require such information
33 it deems necessary to fulfill the purposes of this section. A
34 nonresident pharmacy shall do all of the following in order to
35 obtain a nonresident pharmacy license from the board:

1 Sec. 115. Section 155A.13A, subsection 1, paragraph a, Code
2 2026, is amended to read as follows:

3 a. Submit a completed application form and an application
4 fee as determined by the ~~board~~ department.

5 Sec. 116. Section 155A.13C, subsection 1, unnumbered
6 paragraph 1, Code 2026, is amended to read as follows:

7 Any compounding facility that is registered as an
8 outsourcing facility, as defined in 21 U.S.C. §353b, that
9 distributes sterile compounded human drug products without
10 a patient-specific prescription to an authorized agent or
11 practitioner in this state shall obtain an outsourcing facility
12 license from the board prior to engaging in such distribution.
13 If an outsourcing facility dispenses prescription drugs
14 pursuant to patient-specific prescriptions to patients in Iowa,
15 the outsourcing facility shall obtain and maintain a valid Iowa
16 pharmacy license or Iowa nonresident pharmacy license under
17 this chapter. The ~~board~~ department shall make available an
18 application form for an outsourcing facility license and shall
19 require such information it deems necessary to fulfill the
20 purposes of this section. An outsourcing facility shall do all
21 of the following in order to obtain an outsourcing facility
22 license from the board:

23 Sec. 117. Section 155A.13C, subsection 1, paragraph a, Code
24 2026, is amended to read as follows:

25 a. Submit a completed application form and application fee
26 as determined by the ~~board~~ department.

27 Sec. 118. Section 155A.13C, subsection 2, Code 2026, is
28 amended by striking the subsection.

29 Sec. 119. Section 155A.14, Code 2026, is amended to read as
30 follows:

31 **155A.14 Renewal of pharmacy license.**

32 The ~~board~~ department shall specify by rule the procedures to
33 be followed and the fee to be paid for a renewal certificate,
34 and the penalties for late renewal or failure to renew a
35 pharmacy license.

1 Sec. 120. Section 155A.17, subsection 3, Code 2026, is
2 amended to read as follows:

3 3. The board shall adopt rules establishing requirements
4 for wholesale distributor licenses, ~~licensure fees~~, and other
5 relevant matters consistent with the federal Drug Supply Chain
6 Security Act, 21 U.S.C. §360eee et seq. Licensure fees shall
7 be established by the department by rule.

8 Sec. 121. Section 155A.17A, subsection 3, Code 2026, is
9 amended to read as follows:

10 3. The board shall adopt rules establishing requirements
11 for a third-party logistics provider license, ~~licensure fees~~,
12 and other relevant matters consistent with the federal Drug
13 Supply Chain Security Act, 21 U.S.C. §360eee et seq. Licensure
14 fees shall be established by the department by rule.

15 Sec. 122. Section 155A.43, Code 2026, is amended to read as
16 follows:

17 **155A.43 Pharmaceutical collection and disposal program —**
18 **annual allocation.**

19 Of the fees collected by the ~~board~~ department pursuant to
20 sections 124.301 and 147.80 and this chapter, and retained by
21 the ~~board~~ department pursuant to section 147.82, the ~~board~~
22 department may annually allocate a sum deemed by the ~~board~~
23 department to be adequate for administering the pharmaceutical
24 collection and disposal program. The program shall provide
25 for the management and disposal of unused, excess, and expired
26 pharmaceuticals, including the management and disposal
27 of controlled substances pursuant to state and federal
28 regulations. The ~~board~~ department may contract with one or
29 more vendors for the provision of supplies and services to
30 manage and maintain the program and to safely and appropriately
31 dispose of pharmaceuticals collected through the program.

32 Sec. 123. Section 156.8, Code 2026, is amended to read as
33 follows:

34 **156.8 Internships.**

35 The board shall, by rule, provide for internships in

1 mortuary science, and shall regulate the registration, and
2 training, ~~and fee~~ for internships.

3 Sec. 124. Section 156.14, subsection 2, Code 2026, is
4 amended to read as follows:

5 2. ~~The board shall specify by rule the licensing procedures~~
6 ~~to be followed, including specifications of forms for use in~~
7 ~~applying for an establishment license and fees for filing an~~
8 ~~application.~~ The board shall specify by rule minimum standards
9 for professional responsibility in the conduct of a funeral
10 establishment or a cremation establishment.

11 Sec. 125. Section 156.14, subsection 3, unnumbered
12 paragraph 1, Code 2026, is amended to read as follows:

13 To qualify for a funeral establishment or a cremation
14 establishment license, the applicant shall submit to the board
15 a license fee ~~as determined by the board~~ and a completed
16 application ~~on a form prescribed by the board~~ that shall
17 include the following information and be given under oath:

18 Sec. 126. Section 156.15, subsection 2, Code 2026, is
19 amended by adding the following new paragraphs:

20 NEW PARAGRAPH. e. Failed to keep and maintain records
21 required by this chapter or rules adopted under this chapter.

22 NEW PARAGRAPH. f. Violated section 147.55 or 272C.10.

23 Sec. 127. Section 156.15, subsection 3, Code 2026, is
24 amended by striking the subsection.

25 Sec. 128. Section 157.4, subsection 2, Code 2026, is amended
26 to read as follows:

27 2. The fee for a temporary permit shall be established by
28 the ~~board~~ department as provided in section 147.80.

29 Sec. 129. Section 157.4, subsection 3, paragraph e, Code
30 2026, is amended to read as follows:

31 e. An applicant shall submit an application fee determined
32 by the ~~board~~ department by rule.

33 Sec. 130. Section 157.4B, subsection 3, Code 2026, is
34 amended by striking the subsection.

35 Sec. 131. Section 157.8, subsection 2, paragraph a, Code

1 2026, is amended to read as follows:

2 a. The application for a license for a school shall be
3 accompanied by the annual license fee determined pursuant to
4 section 147.80, and shall state the name and location of the
5 school and ~~such~~ other additional information as the board may
6 require. The license is valid for ~~one year~~ a period determined
7 by the department by rule and may be renewed.

8 Sec. 132. Section 157.8, subsection 3, paragraph c, Code
9 2026, is amended to read as follows:

10 c. A person employed as an instructor in the barbering
11 and cosmetology arts and sciences by a licensed school shall
12 be licensed in the practice and shall possess a separate
13 instructor's license which shall be renewed ~~biennially on~~
14 a schedule as determined by the department by rule. An
15 instructor shall file an application with the department on
16 forms prescribed by the board. Requirements for licensure as
17 an instructor shall be determined by the board by rule.

18 Sec. 133. Section 157.9, Code 2026, is amended to read as
19 follows:

20 **157.9 License suspension and revocation.**

21 Any license issued by the department under ~~the provisions~~
22 ~~of~~ this chapter may be suspended, revoked, or renewal denied
23 by the board for violation ~~of any provision~~ of this chapter,
24 chapter 147, chapter 272C, or rules promulgated by the board
25 under ~~the provisions of~~ chapter 17A.

26 Sec. 134. Section 157.11, subsection 2, Code 2026, is
27 amended to read as follows:

28 2. The application shall be accompanied by the ~~biennial~~
29 license fee determined pursuant to section 147.80. The license
30 is valid for ~~two years~~ a term determined by the department by
31 rule and may be renewed.

32 Sec. 135. Section 272C.3, subsection 2, paragraph a, Code
33 2026, is amended to read as follows:

34 a. Revoke a license, or suspend a license either until
35 further order of the board or for a specified period, upon any

1 of the grounds specified in section 100D.5, 105.22, 147.55,
2 148.6, 148B.7, 152.10, 153.34, 154A.24, 169.13, 455B.219,
3 542.10, 542B.21, 543B.29, 544A.13, ~~544B.15~~, or 602.3203 or
4 chapter 151 or 155, as applicable, or upon any other grounds
5 specifically provided for in this chapter for revocation of
6 the license of a licensee subject to the jurisdiction of
7 that board, or upon failure of the licensee to comply with a
8 decision of the board imposing licensee discipline.

9 Sec. 136. Section 272C.4, subsection 6, Code 2026, is
10 amended to read as follows:

11 6. Define by rule acts or omissions that are grounds for
12 revocation or suspension of a license under section 100D.5,
13 105.22, 147.55, 148.6, 148B.7, 152.10, 153.34, 154A.24, 169.13,
14 455B.219, 542.10, 542B.21, 543B.29, 544A.13, ~~544B.15~~, or
15 602.3203 or chapter 148I, 151, or 155, as applicable, and to
16 define by rule acts or omissions that constitute negligence,
17 careless acts, or omissions within the meaning of section
18 272C.3, subsection 2, paragraph "b", which licensees are
19 required to report to the board pursuant to section 272C.9,
20 subsection 2.

21 Sec. 137. Section 272C.5, subsection 2, paragraph c, Code
22 2026, is amended to read as follows:

23 c. Shall state whether the procedures are an alternative
24 to or an addition to the procedures stated in sections 100D.5,
25 105.23, 105.24, 148.6 through ~~148.9~~, 152.10, ~~152.11~~, 153.33,
26 and 154A.23, ~~542.11, 542B.22, 543B.35, 543B.36, and 544B.16.~~

27 Sec. 138. Section 459.102, subsection 44, Code 2026, is
28 amended to read as follows:

29 44. "*Professional engineer*" means a person engaged in the
30 practice of engineering as defined in section 542B.2 who ~~is~~
31 has been issued a certificate of licensure as a professional
32 engineer ~~pursuant to section 542B.17.~~

33 Sec. 139. Section 538A.2, subsection 2, paragraph e, Code
34 2026, is amended to read as follows:

35 e. A person licensed as a real estate broker or salesperson,

1 under ~~section 543B.20~~ chapter 543B, acting within the course
2 and scope of that license.

3 Sec. 140. Section 542.3, Code 2026, is amended by adding the
4 following new subsections:

5 NEW SUBSECTION. 1A. "*Attest and compilation review record*"
6 means a file, report, or other information relating to the
7 professional competence of an applicant in the possession of an
8 attest and compilation review team, or information concerning
9 an attest and compilation services review developed by a review
10 team in the possession of an applicant.

11 NEW SUBSECTION. 1B. "*Attest and compilation review report*"
12 means a study, appraisal, or review of one or more aspects of a
13 certified public accounting firm's compliance with applicable
14 accounting, auditing, and other attestation standards adopted
15 by generally recognized standard-setting bodies.

16 NEW SUBSECTION. 1C. "*Attest and compilation review team*"
17 means a person or organization participating in an attest and
18 compilation review function, but does not include the board.

19 NEW SUBSECTION. 1D. "*Attest and compilation services*
20 *review*" means a study, appraisal, or review of one or more
21 aspects of the professional work of a licensee or firm that
22 performs attest or compilation services, by a licensed person
23 or persons who are not affiliated with the licensee or firm
24 being reviewed. "*Attest and compilation services review*" does
25 not include a peer review conducted pursuant to chapter 272C in
26 connection with a disciplinary investigation.

27 Sec. 141. Section 542.3, subsections 19, 20, 21, and 22,
28 Code 2026, are amended by striking the subsections.

29 Sec. 142. Section 542.4, subsection 1, unnumbered paragraph
30 1, Code 2026, is amended to read as follows:

31 An Iowa accountancy examining board is created within the
32 department of inspections, appeals, and licensing pursuant to
33 section 147.13 to administer and enforce this chapter.

34 Sec. 143. Section 542.4, subsection 1, paragraphs a, b,
35 c, d, e, f, and g, Code 2026, are amended by striking the

1 paragraphs.

2 Sec. 144. Section 542.4, subsections 2, 3, 4, 5, 6, and 8,
3 Code 2026, are amended by striking the subsections.

4 Sec. 145. Section 542.4, subsection 9, paragraph b, Code
5 2026, is amended by striking the paragraph.

6 Sec. 146. Section 542.4, subsection 9, paragraphs q and t,
7 Code 2026, are amended to read as follows:

8 q. Rules regarding peer attest and compilation services
9 review that may be required to be performed under this chapter.

10 t. Such other rules as the board deems necessary or
11 appropriate for administering this chapter, including but not
12 limited to rules establishing fees and rules of professional
13 conduct, pertaining to corporations or limited liability
14 companies practicing accounting, which the board deems
15 consistent with or required by the public welfare. The
16 board may adopt rules governing the style, name, and title of
17 corporations and limited liability companies and governing the
18 affiliation of corporations and limited liability companies
19 with other organizations.

20 Sec. 147. Section 542.5, subsection 1, Code 2026, is amended
21 to read as follows:

22 1. A certificate as a certified public accountant may
23 be granted to a person of good moral character ~~who makes~~
24 ~~application pursuant to section 542.6 and~~ who satisfies the
25 education, experience, and examination requirements of this
26 section and rules adopted pursuant to this section.

27 Sec. 148. Section 542.5, subsections 6, 10, and 11, Code
28 2026, are amended by striking the subsections.

29 Sec. 149. Section 542.6, Code 2026, is amended to read as
30 follows:

31 **542.6 Issuance and renewal of certificates — maintenance of**
32 **competency.**

33 1. ~~a. The board shall issue a certificate to a person who~~
34 ~~makes application on a form prescribed and furnished by the~~
35 ~~board and who demonstrates either of the following:~~

1 ~~(1) That the person's qualifications, including where~~
2 ~~applicable the qualifications prescribed by section 542.5,~~
3 ~~satisfy the requirements of this section, or that the person~~
4 ~~holds a certificate issued under prior law.~~

5 ~~(2) That the person holds in good standing a certificate or~~
6 ~~license to practice as a certified public accountant in another~~
7 ~~state or equivalent designation from a foreign country, and is~~
8 ~~eligible under the substantial equivalency or other provisions~~
9 ~~of section 542.19.~~

10 ~~b.~~ The holder of a certificate issued under this section
11 ~~by the board~~ shall only provide attest services in a certified
12 ~~public accounting firm that is issued a permit under section~~
13 ~~542.7, or through a certified public accounting firm with a~~
14 ~~practice privilege under section 542.20.~~

15 ~~2. A certificate shall be initially issued, and renewed,~~
16 ~~for a period of not more than three years, but in any event~~
17 ~~shall expire on a date specified by rule. A person who fails~~
18 ~~to renew a certificate as a certified public accountant by the~~
19 ~~expiration date shall be allowed to do so within thirty days~~
20 ~~following its expiration, but the board may assess a reasonable~~
21 ~~penalty. The board shall specify by rule the conditions under~~
22 ~~which a lapsed certificate may be reinstated, including the~~
23 ~~imposition of administrative penalties.~~

24 ~~3. A certificate holder, for renewal of a certificate~~
25 ~~under this section, shall participate in a program of learning~~
26 ~~designed to maintain professional competency. Such program~~
27 ~~of learning must comply with rules adopted by the board. The~~
28 ~~board, by rule, may grant an exception to this requirement~~
29 ~~for a certificate holder who does not perform or offer to~~
30 ~~perform for the public one or more kinds of services involving~~
31 ~~the use of accounting or auditing skills, including issuance~~
32 ~~of reports on financial statements or the use of one or more~~
33 ~~kinds of management advisory, financial advisory, or consulting~~
34 ~~services, or the preparation of tax returns or the furnishing~~
35 ~~of advice on tax matters. A certificate holder entitled to an~~

1 ~~exception by rule of the board shall place the word "inactive"~~
2 ~~adjacent to the holder's certified public accountant title on~~
3 ~~any business card, letterhead, or other document or device,~~
4 ~~with the exception of the certificate holder's certified public~~
5 ~~accountant certificate, on which the certificate holder's~~
6 ~~certified public accountant title appears.~~

7 4. ~~The board shall charge an application fee for initial~~
8 ~~issuance or renewal of a certificate in an amount prescribed by~~
9 ~~the board by rule.~~

10 5. ~~An applicant for initial issuance or renewal of a~~
11 ~~certificate shall list in the application all states in which~~
12 ~~the applicant has applied for or holds a certificate, license,~~
13 ~~or permit and list any past denial, revocation, or suspension~~
14 ~~of a certificate, license, or permit. A holder of or applicant~~
15 ~~for a certificate under this section shall notify the board~~
16 ~~in writing, within thirty days after its occurrence, of any~~
17 ~~issuance, denial, revocation, or suspension of a certificate,~~
18 ~~license, or permit by another state.~~

19 6. 2. The board, by rule, shall require as a condition for
20 renewal of a certificate under this section, by any certificate
21 holder who performs compilation services for the public other
22 than through a certified public accounting firm or licensed
23 public accounting firm, that such individual undergo, no more
24 frequently than once every three years, a peer attest and
25 compilation services review conducted in such manner as the
26 board shall by rule specify, and such review shall include
27 verification that such individual has met the competency
28 requirements set out in professional standards for such
29 services. The provisions of section 542.7, subsections 10, 11,
30 and 12, shall apply to the peer attest and compilation services
31 review required in this subsection.

32 Sec. 150. Section 542.7, subsections 2, 5, and 6, Code 2026,
33 are amended by striking the subsections.

34 Sec. 151. Section 542.7, subsection 8, paragraphs a and b,
35 Code 2026, are amended to read as follows:

1 a. The board, by rule, shall require as a condition
2 of renewal of a permit to practice as a certified public
3 accounting firm, that an applicant undergo, no more frequently
4 than once every three years, ~~a-peer~~ an attest and compilation
5 services review conducted in such manner as the board
6 specifies. The review shall include a verification that any
7 individual in the firm who is responsible for supervising
8 attest and compilation services and who signs or authorizes
9 someone to sign the accountant's report on behalf of the firm
10 meets the competency requirements set forth in the professional
11 standards for such services.

12 b. Such rules shall include reasonable provision for
13 compliance by an applicant showing that the applicant,
14 within the preceding three years, has undergone ~~a-peer~~ an
15 attest and compilation services review that is a satisfactory
16 equivalent to the ~~peer~~ review required under this subsection.
17 An applicant's completion of a peer review program endorsed
18 or supported by the American institute of certified public
19 accountants, or other substantially similar review as
20 determined by the board, satisfies the requirements of this
21 subsection.

22 Sec. 152. Section 542.7, subsection 9, paragraph a, Code
23 2026, is amended to read as follows:

24 a. The applicant does not engage in, and does not intend to
25 engage in during the following year, financial reporting areas
26 of practice, including but not limited to audits, compilations,
27 and reviews. An applicant granted a waiver pursuant to this
28 paragraph shall immediately notify the board if the applicant
29 engages in such practice, and shall be subject to ~~peer~~ an
30 attest and compilation services review.

31 Sec. 153. Section 542.7, subsections 10, 11, and 12, Code
32 2026, are amended to read as follows:

33 10. a. ~~Peer~~ Attest and compilation review records are
34 privileged and confidential, and are not subject to discovery,
35 subpoena, or other means of legal compulsion. ~~Peer~~ Attest

1 and compilation review records are not admissible in evidence
2 in a judicial, administrative, or arbitration proceeding.
3 Unless the subject of a ~~peer~~ an attest and compilation review
4 timely objects in writing to the administering entity of
5 the ~~peer~~ attest and compilation services review ~~program~~,
6 the administering entity shall make available to the board
7 within thirty days of the issuance of the ~~peer~~ attest and
8 compilation services review acceptance letter the final ~~peer~~
9 attest and compilation review report or such ~~peer~~ attest and
10 compilation review records as are designated by the ~~peer~~
11 attest and compilation services review ~~program~~ in which the
12 administering entity participates. The subject of a ~~peer~~ an
13 attest and compilation services review may voluntarily submit
14 the final ~~peer~~ attest and compilation review report directly
15 to the board. Information or documents discoverable from
16 sources other than a ~~peer~~ an attest and compilation review
17 team do not become nondiscoverable from such other sources
18 because they are made available to or are in the possession of
19 a ~~peer~~ an attest and compilation review team. Information or
20 documents publicly available from the American institute of
21 certified public accountants relating to quality or peer review
22 are not privileged or confidential under this subsection. A
23 person or organization participating in ~~the peer~~ an attest
24 and compilation services review ~~process~~ shall not testify as
25 to the findings, recommendations, evaluations, or opinions of
26 a ~~peer~~ an attest and compilation review team in a judicial,
27 administrative, or arbitration proceeding.

28 *b.* However, notwithstanding any provision of this subsection
29 to the contrary, ~~peer~~ attest and compilation review reports
30 concerning the office of auditor of state shall be considered a
31 public record pursuant to chapter 22.

32 11. A person is not liable as a result of an act, omission,
33 or decision made in connection with the person's service on a
34 ~~peer~~ an attest and compilation review team, unless the act,
35 omission, or decision is made with actual malice. A person

1 is not liable as a result of providing information to a ~~peer~~
2 an attest and compilation review team, or for disclosure of
3 privileged matters to a ~~peer~~ an attest and compilation review
4 team.

5 12. The costs of ~~the peer~~ an attest and compilation services
6 review shall be paid by the applicant.

7 Sec. 154. Section 542.8, subsection 1, paragraph b,
8 unnumbered paragraph 1, Code 2026, is amended to read as
9 follows:

10 The applicant has satisfactorily completed the examination
11 ~~prescribed in subsection 2~~ by the board by rule after having
12 met one of the following:

13 Sec. 155. Section 542.8, subsections 2, 3, 4, 5, 6, 7, 9,
14 10, 11, 14, and 15, Code 2026, are amended by striking the
15 subsections.

16 Sec. 156. Section 542.8, subsections 17, 19, 20, 21, and 22,
17 Code 2026, are amended to read as follows:

18 17. The board, by rule, shall require as a condition of
19 renewal of a permit to practice as a licensed public accounting
20 firm, that an applicant undergo, no more frequently than once
21 every three years, a ~~peer~~ an attest and compilation services
22 review conducted in such manner as the board specifies. The
23 review shall include verification that any individual in the
24 firm who is responsible for supervising compilation services
25 and who signs or authorizes someone to sign the accountant's
26 report on a financial statement on behalf of the firm meets
27 the competency requirements set forth in the professional
28 standards for such services. Such rules shall include
29 reasonable provision for compliance by an applicant showing
30 that the applicant, within the preceding three years, has
31 undergone a ~~peer~~ an attest and compilation services review
32 that is a satisfactory equivalent to the ~~peer~~ attest and
33 compilation services review required under this subsection.
34 An applicant's completion of a ~~peer~~ an attest and compilation
35 services review ~~program~~ endorsed or supported by the national

1 society of accountants, or other substantially similar review
2 as determined by the board, satisfies the requirements of this
3 subsection.

4 19. Peer Attest and compilation review records are
5 privileged and confidential, and are not subject to discovery,
6 subpoena, or other means of legal compulsion. Peer Attest and
7 compilation review records are not admissible in evidence in a
8 judicial, administrative, or arbitration proceeding. Unless
9 the subject of a ~~peer~~ an attest and compilation services
10 review timely objects in writing to the administering entity
11 of the ~~peer~~ attest and compilation services review program,
12 the administering entity shall make available to the board
13 within thirty days of the issuance of the ~~peer~~ attest and
14 compilation services review acceptance letter the final ~~peer~~
15 attest and compilation review report or such ~~peer~~ attest and
16 compilation review records as are designated by the ~~peer~~
17 attest and compilation services review program in which the
18 administering entity participates. The subject of a ~~peer~~ an
19 attest and compilation services review may voluntarily submit
20 the final ~~peer~~ attest and compilation review report directly to
21 the board. Information or documents discoverable from sources
22 other than a ~~peer~~ an attest and compilation review team do not
23 become nondiscoverable from such other sources because they are
24 made available to or are in the possession of a ~~peer~~ an attest
25 and compilation review team. Information or documents publicly
26 available from the national society of accountants relating to
27 quality or ~~peer~~ attest and compilation services review are not
28 privileged or confidential under this subsection. A person or
29 organization participating in the ~~peer~~ attest and compilation
30 services review process shall not testify as to the findings,
31 recommendations, evaluations, or opinions of a ~~peer~~ an attest
32 and compilation review team in a judicial, administrative, or
33 arbitration proceeding.

34 20. A person is not liable as a result of an act, omission,
35 or decision made in connection with the person's service in a

1 ~~peer~~ an attest and compilation review team, unless the act,
2 omission, or decision is made with actual malice. A person
3 is not liable as a result of providing information to a ~~peer~~
4 an attest and compilation review team, or for disclosure of
5 privileged matters to a ~~peer~~ an attest and compilation review
6 team.

7 21. The costs of the ~~peer~~ attest and compilation services
8 review shall be paid by the applicant.

9 22. The board, by rule, shall require as a condition for
10 renewal of a license under this section by any license holder
11 who performs compilation services for the public other than
12 through a licensed public accounting firm or a certified
13 public accounting firm, that such individual undergo, no more
14 frequently than once every three years, a ~~peer~~ an attest and
15 compilation services review conducted in such manner as the
16 board shall by rule specify, and such review shall include
17 verification that such individual has met the competency
18 requirements set out in professional standards for such
19 services.

20 Sec. 157. Section 542.8, subsection 18, paragraph a, Code
21 2026, is amended to read as follows:

22 a. The applicant does not engage in, and does not intend
23 to engage in during the following year, financial reporting
24 areas of practice, including but not limited to compilations.
25 An applicant granted a waiver pursuant to this paragraph shall
26 immediately notify the board if the applicant engages in such
27 practice, and shall be subject to ~~peer~~ attest and compilation
28 services review.

29 Sec. 158. Section 542.9, Code 2026, is amended to read as
30 follows:

31 **542.9 Appointment of secretary of state as agent.**

32 ~~Application for~~ Issuance of a certificate under section
33 542.6, or application for a license under section 542.8, a
34 permit to practice under section 542.7, or a certificate under
35 section 542.19 by a person or a firm not a resident of this

1 state constitutes appointment of the secretary of state as
2 the applicant's agent upon whom process may be served in any
3 action or proceeding against the applicant arising out of
4 a transaction or operation connected with or incidental to
5 services performed by the applicant while a licensee within
6 this state.

7 Sec. 159. Section 542.10, subsection 1, unnumbered
8 paragraph 1, Code 2026, is amended to read as follows:

9 After notice and hearing ~~pursuant to section 542.11, the~~
10 board may revoke, suspend ~~for a period of time not to exceed~~
11 ~~two years~~, or refuse to renew a license; reprimand, censure,
12 or limit the scope of practice of any licensee; impose an
13 administrative penalty not to exceed one thousand dollars
14 per violation against an individual licensee or ten thousand
15 dollars per violation against a firm licensee; require remedial
16 actions; or place any licensee on probation; all with or
17 without terms, conditions, and in combinations of remedies, for
18 any one or more of the following reasons:

19 Sec. 160. Section 542.10, subsection 3, Code 2026, is
20 amended to read as follows:

21 3. In lieu of or in addition to any remedy specifically
22 provided in subsection 1, the board may require a licensee to
23 satisfy ~~a peer~~ an attest and compilation services review or
24 desk review process on such terms as the board may specify,
25 satisfactorily complete a continuing education program, or such
26 additional remedies as the board may specify by rule.

27 Sec. 161. Section 542.13, subsection 13, paragraph c, Code
28 2026, is amended to read as follows:

29 c. Undergoes, no less frequently than once every three
30 years, ~~a peer~~ an attest and compilation services review
31 conducted in a manner as specified by the board. The review
32 shall include verification that such individual has met the
33 competency requirements set out in professional standards for
34 such services.

35 Sec. 162. Section 542.14, subsections 1 and 5, Code 2026,

1 are amended by striking the subsections.

2 Sec. 163. Section 542.14, subsection 2, Code 2026, is
3 amended to read as follows:

4 2. In addition to a criminal penalty provided for in
5 ~~section 542.15~~ chapter 147, the board may issue an order to
6 require compliance with section 542.13 or 542.20 or to revoke a
7 practice privilege under section 542.20, and may impose a civil
8 penalty not to exceed one thousand dollars for each offense
9 upon a person who is not a licensee under this chapter and who
10 engages in conduct prohibited by section 542.13 or 542.20.
11 Each day of a continued violation constitutes a separate
12 offense. The board may impose a penalty up to ten thousand
13 dollars per violation against a firm that violates section
14 542.13 or 542.20.

15 Sec. 164. Section 542.17, subsection 1, Code 2026, is
16 amended to read as follows:

17 1. A licensee shall not voluntarily disclose information
18 communicated to the licensee by a client relating to and
19 in connection with services rendered to the client by the
20 licensee, except with the permission of the client, or an
21 heir, successor, or personal representative of the client.
22 Such information is deemed to be confidential. However, this
23 section shall not be construed as prohibiting the disclosure of
24 information required to be disclosed by the standards of the
25 public accounting profession in reporting on the examination of
26 financial statements or in the performance of an attest service
27 or as prohibiting disclosures in a court proceeding, in an
28 investigation or proceeding under this chapter or chapter 272C,
29 in an ethical investigation conducted by a private professional
30 organization, in the course of ~~a peer~~ an attest and compilation
31 services review, to another person active in the licensee's
32 firm performing services for that client on a need-to-know
33 basis, to persons associated with the investigative entity who
34 need this information for the sole purpose of assuring quality
35 control, or as otherwise required by law.

1 Sec. 165. Section 542.18, subsection 1, Code 2026, is
2 amended to read as follows:

3 1. Subject to section 542.17, all statements, records,
4 schedules, working papers, and memoranda made by a licensee or
5 a partner, shareholder, officer, director, member, manager,
6 or employee of a licensee, incident to, or in the course of,
7 rendering services to a client, except reports submitted by
8 the licensee to the client and except for records that are
9 part of the client's records, are the property of the licensee
10 in the absence of an express agreement between the licensee
11 and the client to the contrary. Such statement, record,
12 schedule, working paper, or memorandum shall not be sold,
13 transferred, or bequeathed, without the consent of the client
14 or the client's personal representative or assignee, to anyone
15 other than a surviving partner, stockholder, or member of
16 the licensee, or any combined or merged firm or successor in
17 interest to the licensee. This section shall not be construed
18 as prohibiting a temporary transfer of working papers or other
19 material necessary in the course of carrying out ~~peer attest~~
20 and compilation services reviews or as otherwise interfering
21 with the disclosure of information pursuant to section 542.17.

22 Sec. 166. Section 542.19, subsection 1, paragraph c,
23 subparagraph (3), Code 2026, is amended by striking the
24 subparagraph.

25 Sec. 167. Section 542.20, subsection 5, paragraph e, Code
26 2026, is amended to read as follows:

27 e. The firm shall comply with the ownership and ~~peer attest~~
28 and compilation services review requirements of section 542.7.

29 Sec. 168. Section 542.20, subsection 6, paragraphs c and d,
30 Code 2026, are amended to read as follows:

31 c. An individual who provides attest services in Iowa or
32 for a client having a home office in Iowa must practice through
33 a certified public accounting firm that is licensed under
34 section 542.7, or through a certified public accounting firm
35 that is validly licensed in the state of its principal place of

1 business and complies with the ownership and peer attest and
2 compilation services review requirements of section 542.7.

3 *d.* An individual who provides compilation services in Iowa
4 or for a client having a home office in Iowa must comply with
5 the peer attest and compilation services review provisions of
6 section 542.6, subsection 6, or provide such services through a
7 certified public accounting firm, a licensed public accounting
8 firm, or substantially equivalent firm that is validly licensed
9 in the firm's principal place of business and is subject to
10 the peer attest and compilation services review and ownership
11 provisions of section 542.7 or 542.8.

12 Sec. 169. Section 542.20, subsection 7, paragraph c, Code
13 2026, is amended to read as follows:

14 *c.* Agrees to supply the board, upon the board's request
15 and without subpoena, such information or records as licensees
16 are similarly required to provide the board under this chapter
17 regarding themselves or, in the case of a firm, regarding
18 the individuals practicing through the firm, including
19 but not limited to licensure status in all jurisdictions;
20 qualifications for substantial equivalency reciprocity under
21 section 542.19, subsection 1, paragraph "a", "b", or "c";
22 location of principal place of business and all other offices;
23 criminal and disciplinary background; malpractice settlements
24 and judgments; firm ownership and when applicable, information
25 regarding nonlicensee owners; whether public accounting
26 services are subject to peer attest and compilation services
27 review; proof of completion of peer attest and compilation
28 services review, when applicable; qualifications to supervise
29 attest services, when applicable; and timely response to
30 inquiries regarding complaints and investigations conducted
31 under this chapter.

32 Sec. 170. Section 542B.3, Code 2026, is amended to read as
33 follows:

34 **542B.3 Engineering and land surveying examining board**
35 **created.**

1 An engineering and land surveying examining board is
2 created within the department of inspections, appeals, and
3 licensing. ~~The board consists of three members who are~~
4 ~~licensed professional engineers, two members who are licensed~~
5 ~~professional land surveyors, and two members who are not~~
6 ~~licensed professional engineers or licensed professional land~~
7 ~~surveyors and who shall represent the general public. An~~
8 ~~individual who is licensed as both a professional engineer and~~
9 ~~a professional land surveyor may serve to satisfy the board~~
10 ~~membership requirement for either a licensed professional~~
11 ~~engineer or a licensed professional land surveyor, but not~~
12 ~~both. Members shall be appointed by the governor subject~~
13 ~~to confirmation by the senate. A licensed member shall~~
14 ~~be actively engaged in the practice of engineering or land~~
15 ~~surveying and shall have been so engaged for five years~~
16 ~~preceding the appointment, the last two of which shall have~~
17 ~~been in Iowa. Insofar as practicable, licensed engineer~~
18 ~~members of the board shall be from different branches of the~~
19 ~~profession of engineering. Professional associations or~~
20 ~~societies composed of licensed engineers or licensed land~~
21 ~~surveyors may recommend the names of potential board members~~
22 ~~whose profession is representative of that association or~~
23 ~~society to the governor. However, the governor is not bound by~~
24 ~~the recommendations. A board member shall not be required to~~
25 ~~be a member of any professional association or society composed~~
26 ~~of professional engineers or professional land surveyors.~~

27 Sec. 171. Section 542B.15, Code 2026, is amended to read as
28 follows:

29 **542B.15 Examinations — ~~report required.~~**

30 Examinations for licensure shall be given as often as
31 deemed necessary by the department of inspections, appeals,
32 and licensing, but no less than one time per year. The scope
33 of the examinations and the methods of procedure shall be
34 prescribed by the board. The identity of the person taking
35 the examination shall be concealed until after the examination

1 has been graded by the department of inspections, appeals,
2 and licensing. ~~As soon as practicable after the close of~~
3 ~~each examination, a report shall be filed in the office of~~
4 ~~the secretary of the board by the department of inspections,~~
5 ~~appeals, and licensing. The report shall show the action of~~
6 ~~the board upon each application and the secretary of the board~~
7 ~~shall notify each applicant of the result of the applicant's~~
8 ~~examination. Applicants who fail the examination once shall~~
9 ~~be allowed to take the examination at the next scheduled~~
10 ~~time. Thereafter, the applicant shall be allowed to take the~~
11 ~~examination at the discretion of the board. An applicant who~~
12 ~~has failed the examination may request in writing information~~
13 ~~from the board concerning the applicant's examination grade and~~
14 ~~subject areas or questions which the applicant failed to answer~~
15 ~~correctly, except that if the board administers a uniform,~~
16 ~~standardized examination, the board shall only be required~~
17 ~~to provide the examination grade and such other information~~
18 ~~concerning the applicant's examination results which are~~
19 ~~available to the board.~~

20 Sec. 172. Section 542B.27, subsection 4, Code 2026, is
21 amended to read as follows:

22 4. Before issuing an order under this section, the board
23 shall provide the person written notice and the opportunity to
24 request a hearing on the record. The hearing must be requested
25 within thirty days of the issuance of the notice ~~and shall be~~
26 ~~conducted in the same manner as provided in section 542B.22.~~

27 Sec. 173. Section 543B.8, Code 2026, is amended to read as
28 follows:

29 **543B.8 Real estate commission created — staff.**

30 ~~1. A real estate commission is created within the department~~
31 ~~of inspections, appeals, and licensing. The commission~~
32 ~~consists of four members licensed under this chapter and one~~
33 ~~member not licensed under this chapter and who shall represent~~
34 ~~the general public. Commission members shall be appointed by~~
35 ~~the governor subject to confirmation by the senate.~~

1 ~~2. No more than one member shall be appointed from a~~
2 ~~county. A commission member shall not hold any other elective~~
3 ~~or appointive state or federal office. At least one of the~~
4 ~~licensed members shall be a licensed real estate salesperson,~~
5 ~~except that if the licensed real estate salesperson becomes~~
6 ~~a licensed real estate broker during a term of office,~~
7 ~~that person may complete the term, but is not eligible for~~
8 ~~reappointment on the commission as a licensed real estate~~
9 ~~salesperson. A licensed member shall be actively engaged~~
10 ~~in the real estate business. Professional associations or~~
11 ~~societies of real estate brokers or real estate salespersons~~
12 ~~may recommend the names of potential commission members to~~
13 ~~the governor. However, the governor is not bound by their~~
14 ~~recommendations. A commission member shall not be required to~~
15 ~~be a member of any professional association or society composed~~
16 ~~of real estate brokers or salespersons.~~

17 ~~3. Appointments shall be for three-year terms and shall~~
18 ~~commence and end as provided in section 69.19. A member~~
19 ~~shall serve no more than three terms or nine years, whichever~~
20 ~~is less. Vacancies shall be filled for the unexpired term~~
21 ~~by appointment of the governor and are subject to senate~~
22 ~~confirmation.~~

23 ~~4. A majority of the commission members constitutes a~~
24 ~~quorum.~~

25 ~~5. The director of the department of inspections, appeals,~~
26 ~~and licensing shall hire and provide staff to assist the~~
27 ~~commission with implementing this chapter and shall hire a~~
28 ~~real estate education director to assist the commission in~~
29 ~~administering education programs for the commission.~~

30 Sec. 174. Section 543B.9, Code 2026, is amended to read as
31 follows:

32 **543B.9 Rules.**

33 The real estate commission may adopt rules to carry out and
34 administer the provisions of this chapter. The commission may
35 carry on a program of education of real estate practices and

1 ~~matters relating to real estate. The commission shall adopt~~
2 ~~rules necessary to carry out the provisions of chapter 558A~~
3 ~~relating to the disclosure of information before the transfer~~
4 ~~of real estate.~~

5 Sec. 175. Section 543B.15, subsections 1, 3, 4, 5, and 6,
6 Code 2026, are amended by striking the subsections.

7 Sec. 176. Section 543B.15, subsections 2 and 9, Code 2026,
8 are amended to read as follows:

9 2. To qualify for a license as a real estate broker
10 or salesperson a person shall be eighteen years of age or
11 over. ~~However, an applicant is not ineligible because of~~
12 ~~citizenship, sex, race, religion, marital status, or national~~
13 ~~origin, although the application form may require citizenship~~
14 ~~information.~~

15 9. An applicant for an initial real estate broker's or
16 salesperson's license shall be subject to a national criminal
17 history check through the federal bureau of investigation
18 pursuant to rules adopted by the department pursuant to
19 chapter 17A. ~~The commission shall request the criminal~~
20 ~~history check and shall provide the applicant's fingerprints~~
21 ~~to the department of public safety for submission through~~
22 ~~the state criminal history repository to the federal bureau~~
23 ~~of investigation. The applicant shall authorize release of~~
24 ~~the results of the criminal history check to the real estate~~
25 ~~commission. The applicant shall pay the actual cost of the~~
26 ~~fingerprinting and criminal history check, if any. Unless the~~
27 ~~criminal history check was completed within the two hundred~~
28 ~~ten calendar days prior to the date the license application~~
29 ~~is received by the real estate commission, the commission~~
30 ~~shall reject and return the application to the applicant. The~~
31 ~~commission shall process the application but hold delivery~~
32 ~~of the license until the background check is complete. The~~
33 results of a criminal history check conducted pursuant to
34 this subsection shall not be considered a public record under
35 chapter 22.

1 Sec. 177. Section 543B.20, Code 2026, is amended to read as
2 follows:

3 **543B.20 Examination.**

4 Examinations for a license shall be given as often as deemed
5 necessary by the real estate commission, but no less than one
6 time per year. Each applicant for a license must pass an
7 examination authorized by the commission and administered by
8 the commission or persons designated by the commission. The
9 examination shall be of scope and wording sufficient in the
10 judgment of the commission to establish the competency of the
11 applicant to act as a real estate broker or salesperson in a
12 manner to protect the interests of the public. An examination
13 for a real estate broker shall be of a more exacting nature
14 than that for a real estate salesperson and require higher
15 standards of knowledge of real estate. ~~The identity of the~~
16 ~~persons taking the examinations shall be concealed until after~~
17 ~~the examination has been graded. A person who fails to pass~~
18 ~~either examination once may immediately apply to take the next~~
19 ~~available examination. Thereafter, the applicant may take the~~
20 ~~examination at the discretion of the commission. An applicant~~
21 ~~who has failed either examination may request in writing~~
22 ~~information from the commission concerning the applicant's~~
23 ~~examination grade and subject areas or questions which the~~
24 ~~applicant failed to answer correctly, except that if the~~
25 ~~commission administers a uniform, standardized examination, the~~
26 ~~commission is only required to provide the examination grade~~
27 ~~and other information concerning the applicant's examination~~
28 ~~results which is available to the commission.~~

29 Sec. 178. Section 543B.29, subsection 1, paragraph f, Code
30 2026, is amended to read as follows:

31 f. (1) Conviction of an offense included in section
32 543B.15, subsection 3 in violation of the laws of this state
33 or another jurisdiction of the United States. For purposes of
34 this section, "conviction" means a conviction for an indictable
35 offense and includes the court's acceptance of a guilty plea,

1 a deferred judgment from the time of entry of the deferred
2 judgment until the time the defendant is discharged by the
3 court without entry of judgment, or other finding of guilt by
4 a court of competent jurisdiction. A copy of the record of
5 conviction, guilty plea, deferred judgment, or other finding of
6 guilt is conclusive evidence.

7 ~~(1) A licensed real estate broker or salesperson shall~~
8 ~~notify the commission of the licensee's conviction of an~~
9 ~~offense included in section 543B.15, subsection 3, paragraph~~
10 ~~"a", within ten days of the conviction. Notification of a~~
11 ~~conviction for an offense which is classified as a felony shall~~
12 ~~result in the immediate suspension of a license pending the~~
13 ~~outcome of a hearing conducted pursuant to section 543B.35 to~~
14 ~~determine the nature of the disciplinary action, if any, the~~
15 ~~commission will impose on the licensee. The hearing shall be~~
16 ~~conducted within thirty days of the licensee's notification to~~
17 ~~the commission, and the commission's decision shall be provided~~
18 ~~to the licensee no later than thirty days following the~~
19 ~~hearing. The failure of the licensee to notify the commission~~
20 ~~of the conviction within ten days of the date of the conviction~~
21 ~~is sufficient grounds for revocation of the license.~~

22 (2) The commission, when considering the revocation
23 or suspension of a license pursuant to this paragraph "f",
24 shall consider the nature of the offense; any aggravating or
25 extenuating circumstances which are documented; the time lapsed
26 since the conduct or conviction; the rehabilitation, treatment,
27 or restitution performed by the licensee; and any other factors
28 the commission deems relevant. Character references may be
29 required but shall not be obtained from licensed real estate
30 brokers or salespersons.

31 Sec. 179. Section 543B.29, subsections 2 and 4, Code 2026,
32 are amended by striking the subsections.

33 Sec. 180. Section 543B.31, Code 2026, is amended to read as
34 follows:

35 **543B.31 Place of business — branch license.**

1 Every real estate broker, ~~except as provided in section~~
2 ~~543B.22,~~ shall maintain a place of business in this state. A
3 real estate broker may maintain more than one place of business
4 within the state and a broker may be the designated broker
5 of more than one branch office within the state. If the
6 real estate broker maintains more than one place of business
7 within the state, a duplicate license shall be issued to such
8 broker for each branch office maintained. ~~A fee determined by~~
9 ~~the real estate commission shall be paid for each duplicate~~
10 ~~license.~~

11 Sec. 181. Section 543B.34, subsection 1, unnumbered
12 paragraph 1, Code 2026, is amended to read as follows:

13 ~~The real estate commission may upon its own motion and~~
14 ~~shall upon the verified complaint in writing of any person,~~
15 ~~if the complaint together with evidence, documentary or~~
16 ~~otherwise, presented in connection with the complaint makes~~
17 ~~out a prima facie case, request commission staff or any other~~
18 ~~duly authorized representative or designee to investigate the~~
19 ~~actions of any real estate broker, real estate salesperson, or~~
20 ~~other person who assumes to act in such capacity within this~~
21 ~~state.~~ The commission may assess civil penalties against any
22 person or entity, and may suspend or revoke a license issued
23 under this chapter at any time if the licensee has by false
24 or fraudulent representation obtained a license, or if the
25 licensee or other person assuming to act in the capacity of
26 a real estate broker or real estate salesperson, except for
27 those actions exempt pursuant to section 543B.7, is found to be
28 guilty of any of the following:

29 Sec. 182. Section 543B.34, subsection 3, Code 2026, is
30 amended by striking the subsection.

31 Sec. 183. Section 543B.46, subsections 3 and 6, Code 2026,
32 are amended to read as follows:

33 3. Each broker required to maintain a trust account pursuant
34 to this section shall authorize the ~~real estate commission~~
35 department of inspections, appeals, and licensing to examine

1 each trust account and shall obtain the certification of the
2 federally insured depository institution attesting to each
3 trust account and consenting to the examination and audit
4 of each account by a duly authorized representative of the
5 commission. The certification and consent shall be furnished
6 on forms prescribed by the commission. This subsection does
7 not apply to an individual farm account maintained in the
8 name of the owner or owners for the purpose of conducting
9 ongoing farm business whether it is conducted by the farm owner
10 or by an agent or farm manager when the account is part of
11 a farm management agreement between the owner and agent or
12 manager. This subsection also does not apply to an individual
13 property management account maintained in the name of the
14 owner or owners for the purpose of conducting ongoing property
15 management whether it is conducted by the property owner or
16 by an agent or manager when the account is part of a property
17 management agreement between the owner and agent or manager.

18 6. The ~~commission~~ department of inspections, appeals, and
19 licensing shall verify on a test basis, a random sampling
20 of the brokers, corporations, professional corporations,
21 professional limited liability companies, and partnerships
22 for their trust account compliance. The commission may upon
23 reasonable cause, or as a part of or after an investigation,
24 request or order a special report.

25 Sec. 184. Section 543B.47, subsection 1, Code 2026, is
26 amended to read as follows:

27 1. The real estate commission shall adopt rules requiring
28 as a condition of licensure that all real estate licensees,
29 except those who hold inactive licenses, carry errors and
30 omissions insurance covering all activities contemplated under
31 this chapter. ~~The rules shall provide for administration of~~
32 ~~the insurance requirements of this section within the multiyear~~
33 ~~licensing structure required by section 543B.28. However,~~
34 The rules shall require licensees to submit evidence of
35 compliance with this section within twenty calendar days of

1 the commission's request, which may be made on a test basis, a
2 random basis, or upon reasonable cause to question a licensee's
3 compliance.

4 Sec. 185. Section 543B.62, subsection 1, Code 2026, is
5 amended to read as follows:

6 1. Except as provided in subsection 2, the duties of a
7 licensee specified in this chapter, chapter 147, or chapter
8 272C, or in rules adopted pursuant to this chapter supersede
9 any fiduciary duties of a licensee to a party to a transaction
10 based on common law principles of agency to the extent that
11 those common law fiduciary duties are inconsistent with the
12 duties specified in this chapter or rules adopted pursuant to
13 this chapter.

14 Sec. 186. Section 543D.4, subsection 1, Code 2026, is
15 amended to read as follows:

16 ~~1. A real estate appraiser examining board is established~~
17 ~~within the department of inspections, appeals, and licensing.~~
18 ~~The board consists of five members, one of whom shall be a~~
19 ~~public member and four of whom shall be certified real estate~~
20 ~~appraisers.~~

21 Sec. 187. Section 543D.4, subsections 2, 3, 4, 5, 6, 7, 8,
22 9, and 10, Code 2026, are amended by striking the subsections.

23 Sec. 188. Section 543D.9, Code 2026, is amended to read as
24 follows:

25 **543D.9 Education and experience requirement.**

26 The board shall determine what real estate appraisal or real
27 estate appraisal review experience and what education shall be
28 required to provide appropriate assurance that an applicant for
29 certification is competent to perform the certified appraisal
30 work which is within the scope of practice defined by the
31 board. All experience required for initial certification shall
32 be performed as a registered associate real estate appraiser
33 acting under the direct supervision of a certified real estate
34 appraiser who meets the supervisory requirements established
35 by applicable federal authorities or federal law, rule, or

1 policy in effect at the time the hours of experience are
2 claimed, except as the board may provide by rule. Subject
3 to requirements or limitations established by applicable
4 federal authorities or federal law, rule, or policy, hours
5 qualifying for experience in ~~a bordering~~ another state will
6 be considered qualifying hours for experience in this state
7 without requiring a waiver or authorization from the board
8 in accordance with rules and standards adopted by the board.
9 Qualifying hours completed in ~~a bordering~~ another state shall
10 be under the direct supervision of a certified real estate
11 appraiser with active certification in that ~~bordering~~ state.
12 The board shall prescribe a required minimum number of tested
13 hours of education relating to the provisions of this chapter,
14 the uniform appraisal standards, and other rules issued in
15 accordance with this chapter.

16 Sec. 189. Section 543D.21, subsection 1, Code 2026, is
17 amended by striking the subsection.

18 Sec. 190. Section 544A.1, subsection 2, Code 2026, is
19 amended to read as follows:

20 2. The architectural examining board is created within the
21 department of inspections, appeals, and licensing. ~~The board~~
22 ~~consists of four members who possess a license issued under~~
23 ~~section 544A.9, and one member who does not possess a license~~
24 ~~issued under section 544A.9 and who shall represent the general~~
25 ~~public. Members shall be appointed by the governor subject to~~
26 ~~confirmation by the senate.~~

27 Sec. 191. Section 544A.1, subsection 3, Code 2026, is
28 amended by striking the subsection.

29 Sec. 192. Section 544A.5, Code 2026, is amended to read as
30 follows:

31 **544A.5 Duties.**

32 The architectural examining board shall enforce this
33 chapter, shall adopt rules pursuant to chapter 17A for the
34 examination of applicants for the license provided by this
35 chapter, and shall, after due public notice, hold meetings each

1 year for the purpose of examining applicants for licensure
2 and the transaction of business pertaining to the affairs of
3 the board. ~~Examinations shall be given as often as deemed~~
4 ~~necessary, but not less than annually.~~ Action at a meeting
5 shall not be taken without the affirmative votes of a majority
6 of the members of the board. The director of the department
7 of inspections, appeals, and licensing shall hire and provide
8 staff to assist the board with implementing this chapter.

9 Sec. 193. Section 544A.8, subsection 1, Code 2026, is
10 amended to read as follows:

11 1. Any person may apply for a license or may apply to take
12 an examination for licensure under this chapter. ~~The board~~
13 ~~shall not require that the application contain a photograph of~~
14 ~~the applicant.~~

15 Sec. 194. Section 544A.15, subsection 2, Code 2026, is
16 amended by striking the subsection.

17 Sec. 195. Section 544A.16, subsection 2, Code 2026, is
18 amended to read as follows:

19 2. "*Board*" means the architectural examining board
20 ~~established~~ created in section 544A.1.

21 Sec. 196. Section 544A.29, Code 2026, is amended to read as
22 follows:

23 **544A.29 Rules.**

24 The board may adopt rules ~~consistent with this chapter for~~
25 ~~the administration and enforcement of~~ pursuant to chapter 17A
26 to administer and enforce this chapter and may prescribe forms
27 ~~to be issued. The rules may include, but are not limited~~
28 ~~to, standards and criteria for licensure, license renewal,~~
29 ~~professional conduct, misconduct, and discipline. Violation~~
30 ~~of a rule of conduct is grounds for disciplinary action or~~
31 ~~reprimand or probation at the discretion of the board. The~~
32 ~~board may enter into a consent order with an architect which~~
33 ~~acknowledges an architect's violation and agreement to refrain~~
34 ~~from any further violation. A willful or repeated violation~~
35 ~~of a rule of conduct is grounds for disciplinary action as~~

1 ~~provided in section 544A.13.~~

2 Sec. 197. Section 544B.1, subsection 1, Code 2026, is
3 amended to read as follows:

4 1. "*Board*" means the landscape architectural examining board
5 ~~established~~ created pursuant to section 544B.3.

6 Sec. 198. Section 544B.3, Code 2026, is amended to read as
7 follows:

8 **544B.3 Landscape architectural examining board created.**

9 ~~1. A landscape architectural examining board is created~~
10 ~~within the department of inspections, appeals, and licensing.~~
11 ~~The board consists of five members who are professional~~
12 ~~landscape architects and two members who are not professional~~
13 ~~landscape architects and who shall represent the general~~
14 ~~public. Members shall be appointed by the governor, subject~~
15 ~~to confirmation by the senate. Four of the five professional~~
16 ~~members shall be actively engaged in the practice of landscape~~
17 ~~architecture or the teaching of landscape architecture in~~
18 ~~an accredited college or university, and shall have been so~~
19 ~~engaged for five years preceding appointment, the last two of~~
20 ~~which shall have been in Iowa. One of the five professional~~
21 ~~members shall be actively engaged in the practice of landscape~~
22 ~~architecture or the teaching of landscape architecture in an~~
23 ~~accredited college or university, and may have been so engaged~~
24 ~~for fewer than five years preceding appointment but at least~~
25 ~~one year preceding appointment. Associations or societies~~
26 ~~composed of professional landscape architects may recommend the~~
27 ~~names of potential board members to the governor. However,~~
28 ~~the governor is not bound by the recommendations. A board~~
29 ~~member shall not be required to be a member of any professional~~
30 ~~association or society composed of professional landscape~~
31 ~~architects.~~

32 ~~2. Appointments shall be for three-year terms and shall~~
33 ~~commence and end as provided in section 69.19. Vacancies shall~~
34 ~~be filled for the unexpired term by appointment of the governor~~
35 ~~and are subject to senate confirmation. Members shall serve no~~

1 ~~more than three terms or nine years, whichever is less.~~

2 Sec. 199. Section 544B.5, Code 2026, is amended to read as
3 follows:

4 **544B.5 Duties.**

5 The board shall enforce this chapter and shall make rules
6 for the examination of applicants for licensure. The board
7 shall keep a record of its proceedings. The board shall adopt
8 an official seal which shall be affixed to all certificates
9 of licensure granted. The board may make other rules, not
10 inconsistent with law, as necessary for the proper performance
11 of its duties. ~~The board shall maintain a roster showing the~~
12 ~~name, place of business, and residence, and the date and number~~
13 ~~of the certificate of licensure of every professional landscape~~
14 ~~architect in this state. The director of the department of~~
15 ~~inspections, appeals, and licensing shall hire and provide~~
16 ~~staff to assist the board in implementing this chapter.~~

17 Sec. 200. Section 544B.8, Code 2026, is amended to read as
18 follows:

19 **544B.8 Examination.**

20 ~~1. A person applying for a certificate of licensure as a~~
21 ~~professional landscape architect shall satisfactorily pass an~~
22 ~~examination in technical and professional subjects prescribed~~
23 ~~by the board. The board may adopt the uniform standardized~~
24 ~~examination and grading procedures of a national certification~~
25 ~~body recognized by the board. The examination may be conducted~~
26 ~~by representatives of the board. The identity of a person~~
27 ~~taking the examination shall be concealed until after the~~
28 ~~examination is graded. The fee for examination shall be based~~
29 ~~on the annual cost of administering the examinations. The~~
30 ~~public members of the board shall be allowed to participate in~~
31 ~~administrative, clerical, or ministerial functions incident to~~
32 ~~giving the examination, but shall not determine the content of~~
33 ~~the examination or determine the correctness of the answers.~~

34 ~~2. An applicant who has failed the examination may~~
35 ~~request in writing information from the board concerning the~~

1 ~~applicant's examination grade and subject areas or questions~~
2 ~~which the applicant failed to answer correctly, except that~~
3 ~~if the board administers a uniform, standardized examination,~~
4 ~~the board shall only be required to provide the examination~~
5 ~~grade and such other information concerning the applicant's~~
6 ~~examination results which are available to the board.~~

7 Sec. 201. Section 544B.9, subsection 1, unnumbered
8 paragraph 1, Code 2026, is amended to read as follows:

9 Any person may apply for a certificate of licensure or
10 may apply to take an examination for such certification.
11 ~~Applications for licensure shall be on forms prescribed and~~
12 ~~furnished by the board, shall contain statements made under~~
13 ~~oath, showing the applicant's education and detail summary of~~
14 ~~the applicant's pertinent practical landscape architectural~~
15 ~~work and experience. The board shall not require that a recent~~
16 ~~photograph of the applicant be attached to the application~~
17 ~~form. An applicant shall not be ineligible for licensure on~~
18 ~~the basis of membership in any protected class under chapter~~
19 ~~216. The board may consider the past felony record of an~~
20 ~~applicant only if the felony conviction relates directly to~~
21 ~~the practice of landscape architecture. Character references~~
22 ~~may be required but shall not be obtained from professional~~
23 ~~landscape architects. Each applicant for licensure as~~
24 ~~a professional landscape architect shall meet one of the~~
25 ~~following requirements:~~

26 Sec. 202. Section 544B.20, subsection 5, Code 2026, is
27 amended to read as follows:

28 5. To apply to the business conducted in this state by any
29 planner, agriculturist, soil conservationist, horticulturist,
30 tree expert, arborist, forester, nursery or landscape nursery
31 person, gardener, landscape gardener, landscape contractor,
32 garden or lawn caretaker, tiling contractor, grader or
33 cultivator of land, golf course designer or contractor,
34 or similar business. However, such person shall not use
35 the designation landscape architect or any title or device

1 indicating or representing that such person is a professional
2 landscape architect or is practicing landscape architecture
3 unless such person is licensed ~~under the provisions of section~~
4 ~~544B.11~~ pursuant to this chapter.

5 Sec. 203. Section 544C.2, subsection 1, Code 2026, is
6 amended to read as follows:

7 ~~1. An interior design examining board is established within~~
8 ~~the department. The board consists of seven members: five~~
9 ~~members who are interior designers who are registered under~~
10 ~~this chapter and who have been in the active practice of~~
11 ~~registered interior design for not less than five years, the~~
12 ~~last two of which shall have been in Iowa; and two members who~~
13 ~~are not registered under this chapter and who shall represent~~
14 ~~the general public. Members shall be appointed by the governor~~
15 ~~subject to confirmation by the senate.~~

16 Sec. 204. Section 544C.2, subsections 2 and 3, Code 2026,
17 are amended by striking the subsections.

18 Sec. 205. Section 544C.3, subsection 1, paragraphs e and f,
19 Code 2026, are amended by striking the paragraphs.

20 Sec. 206. Section 544C.3, subsection 2, Code 2026, is
21 amended by striking the subsection.

22 Sec. 207. Section 710A.3, Code 2026, is amended to read as
23 follows:

24 **710A.3 Affirmative defense.**

25 It shall be an affirmative defense, in addition to any other
26 affirmative defenses for which a defendant may be eligible,
27 to a prosecution for a criminal violation of section 152C.5B,
28 152C.5C, 157.4A, ~~157.4B~~, 710A.2, 710A.2A, or 710A.2B, that the
29 violation directly resulted from the defendant's status as a
30 victim of any human trafficking crime under chapter 710A.

31 Sec. 208. REPEAL. Sections 148.2B, 148.7, 148.8, 148.8A,
32 148.9, 148.10, 148.12, 148.14, 148C.13, 149.7, 151.12, 152.2,
33 152.9, 152.11, 152D.9, 153.19, 154B.8, 155.14, 155.19, 155A.5,
34 155A.39, 157.7, 542.11, 542.12, 542.15, 542.16, 542B.4, 542B.6,
35 542B.7, 542B.8, 542B.9, 542B.12, 542B.13, 542B.17, 542B.18,

1 542B.19, 542B.22, 542B.24, 542B.30, 542B.31, 542B.32, 543B.12,
2 543B.13, 543B.14, 543B.16, 543B.18, 543B.19, 543B.21, 543B.22,
3 543B.23, 543B.27, 543B.28, 543B.30, 543B.32, 543B.35, 543B.36,
4 543B.37, 543B.38, 543B.39, 543B.40, 543B.41, 543B.42, 543B.43,
5 543B.44, 543B.49, 543B.50, 543B.51, 543B.52, 543B.53, 543D.6,
6 543D.7, 543D.14, 544A.2, 544A.3, 544A.9, 544A.10, 544A.11,
7 544A.12, 544A.20, 544A.25, 544A.26, 544A.27, 544B.4, 544B.7,
8 544B.10, 544B.11, 544B.13, 544B.14, 544B.15, 544B.16, 544B.17,
9 544B.18, 544B.19, 544C.4, 544C.6, 544C.7, 544C.9, and 544C.11,
10 Code 2026, are repealed.

11 Sec. 209. APPLICABILITY.

12 1. The following apply to licenses issued pursuant to
13 chapter 103 on or after the effective date of this Act and on or
14 after the date on which the department of inspections, appeals,
15 and licensing adopts rules setting the term and renewal
16 procedures for licenses issued pursuant to chapter 103:

17 a. The section of this Act amending section 103.18.

18 b. The section of this Act amending section 103.19,
19 subsections 1 and 2.

20 2. The following applies to licenses issued pursuant to
21 chapter 105 on or after the effective date of this Act and
22 on or after the date on which the department of inspections,
23 appeals, and licensing adopts rules setting the term and
24 renewal procedures for licenses issued pursuant to chapter 105:
25 the section of this Act amending section 105.20, subsection 1.

26 3. The following applies to licenses issued pursuant to
27 chapter 147 on or after the effective date of this Act and
28 on or after the date on which the department of inspections,
29 appeals, and licensing adopts rules setting the term and
30 renewal procedures for licenses issued pursuant to chapter 147:
31 the section of this Act amending section 147.10.

32 4. The following apply to licenses issued pursuant to
33 chapter 157 on or after the effective date of this Act and on or
34 after the date on which the department of inspections, appeals,
35 and licensing adopts rules setting the term and renewal

1 procedures for licenses issued pursuant to chapter 157:

2 a. The sections of this Act amending section 157.8.

3 b. The section of this Act amending section 157.11.

4 5. The following applies to licenses issued pursuant to
5 chapter 542 on or after the effective date of this Act and
6 on or after the date on which the department of inspections,
7 appeals, and licensing adopts rules setting the term and
8 renewal procedures for licenses issued pursuant to chapter 542:
9 the sections of this Act amending section 542.7.

10 EXPLANATION

11 The inclusion of this explanation does not constitute agreement with
12 the explanation's substance by the members of the general assembly.

13 This bill relates to the duties of the department of
14 inspections, appeals, and licensing (department), including the
15 practice of licensed professions and the duties of professional
16 licensing boards.

17 The bill changes the definition of "apprentice electrician"
18 to include a person participating in a training program
19 registered by the Iowa office of apprenticeship (IOA). The
20 bill strikes a requirement for the electrical board to adopt an
21 official seal and requires a license issued under Code chapter
22 103 (electricians and electrical contractors) to be in the form
23 of a certificate under the seal of the department and signed by
24 the director of the department.

25 The bill requires the department to adopt rules to set
26 the term of all licenses issued under Code chapter 103, as
27 well as renewal fees. Under current law, most licenses under
28 Code chapter 103 are valid for a term of three years, except
29 that licenses for apprentice electricians and unclassified
30 persons are valid for a term of one year. The bill also
31 requires a licensee whose license has been revoked, suspended,
32 or voluntarily surrendered to apply for reinstatement of the
33 license. The changes to the term of licenses issued pursuant
34 to Code chapter 103 apply to licenses issued on or after the
35 effective date of the bill and on or after the date on which the

1 department adopts rules setting the term for licenses issued
2 pursuant to Code chapter 103.

3 The bill applies the inspection and enforcement provisions
4 of Code chapter 103 to all new electrical installations for
5 single-family residential applications, rather than only those
6 requiring new electrical service equipment. The bill strikes
7 a provision making the home address and telephone number of
8 licensees in a database of persons licensed pursuant to Code
9 chapter 103 confidential. The bill allows the director of the
10 department or the administrative staff of the department to
11 designate a hearing officer for appeals from among members of
12 the electrical board or administrative law judges employed by
13 the department.

14 The bill changes the definition of "apprentice" under
15 Code chapter 105 (plumbers, mechanical professionals, and
16 contractors) to include a person participating in a training
17 program registered by the IOA. The bill removes the director
18 of health and human services or the director's designee,
19 and the commissioner of public safety or the commissioner's
20 designee, from the membership of the plumbing and mechanical
21 systems board.

22 The bill strikes a provision limiting the length of
23 an application form to take an examination for a license
24 issued pursuant to Code chapter 105. The bill also strikes
25 a provision allowing the plumbing and mechanical systems
26 board (plumbing board) to request a recent photograph of an
27 applicant.

28 The bill strikes a requirement that the plumbing
29 board submit an annual report to the general assembly, an
30 authorization for the board to charge a fee for a paper
31 application, and a provision requiring licenses issued pursuant
32 to Code chapter 105 to expire on the same date every third
33 year. The bill strikes a provision making the home address
34 and telephone number of licensees in a registry of persons
35 licensed pursuant to Code chapter 105 confidential. The bill

1 requires a person licensed pursuant to Code chapter 105 to
2 inform the department if the person changes residence or place
3 of practice.

4 Commencing January 1, 2027, the bill requires a person
5 seeking a journeyperson license pursuant to Code chapter 105 to
6 have four years of practical experience with an apprenticeship
7 training program registered by the IOA. The bill strikes
8 a requirement that the plumbing board establish a special,
9 restricted license fee and instead allows the department to
10 create a special, restricted license fee. The bill strikes a
11 provision related to license applications submitted prior to
12 July 1, 2017.

13 The bill requires the department to adopt rules to set the
14 term of all licenses issued under Code chapter 105, as well as
15 renewal fees. The bill also requires a licensee whose license
16 has been revoked, suspended, or voluntarily surrendered to
17 apply for reinstatement of the license. The changes to the
18 term of licenses issued pursuant to Code chapter 105 apply to
19 licenses issued on or after the effective date of the bill
20 and on or after the date on which the department adopts rules
21 setting the term for licenses issued pursuant to Code chapter
22 105.

23 The bill adds accountants, architects, engineers and land
24 surveyors, real estate brokers, real estate salespersons, real
25 estate appraisers, landscape architects, and interior designers
26 to Code Title IV (public health), subtitle 3 (health-related
27 professions), by moving provisions formerly located in
28 Code chapters regulating those professions, including those
29 related to board composition and title protection. The bill
30 makes conforming changes regarding the practice of persons
31 licensed pursuant to an interstate licensure compact. The bill
32 strikes a provision protecting a person from ineligibility
33 for a license due to citizenship status. The bill requires
34 every license to practice a profession to be in the form of
35 a certificate issued by the department. The bill strikes a

1 provision requiring a board to keep the address of record
2 of licensees available for public inspection and requires a
3 licensee to inform the department of a change in the licensee's
4 address.

5 The bill requires the department to adopt rules for the
6 expiration, renewal, and reinstatement of all professional
7 licenses, and makes conforming changes throughout the Code. A
8 license shall not have a renewal interval of more than five
9 years. The changes to the term of licenses issued pursuant
10 to Code chapter 147 apply to licenses issued on or after the
11 effective date of the bill, and on or after the date on which
12 the department adopts rules setting the term for licenses
13 issued pursuant to Code chapter 147.

14 The bill allows a professional licensing board to issue a
15 temporary license to practice a profession regulated by the
16 board and allows each board to adopt rules for the issuance
17 and revocation of a temporary license. The bill requires the
18 department to set by rule the duration of a temporary license,
19 not to exceed one year. The bill allows a person to renew
20 a temporary license but prohibits a person from practicing
21 under a temporary license for more than three years. The bill
22 also allows a professional licensing board to grant a license,
23 registration, or certification by reciprocity. The bill
24 allows the director of the department to accept a voluntary
25 surrender of a license if accompanied by a written statement
26 of intention, which shall have the same force and effect as
27 an order of revocation. The bill makes conforming changes
28 throughout the Code.

29 The bill changes the definition of a quorum for all
30 professional licensing boards to be a majority of members who
31 are currently serving.

32 The bill allows the department to set fees related to the
33 issuance and renewal of all professional licenses, and shall
34 be deposited in the licensing and regulation fund, and the
35 department shall annually review and adjust the fees. The bill

1 also allows the department to establish by rule the process for
2 issuing reciprocal licenses. The bill requires professional
3 boards to adopt rules necessary and proper to administer and
4 interpret Code chapter 272C (regulation of licensed professions
5 and occupations) and Code chapters 542 through 544C.

6 The bill allows professional licensing boards to refer
7 violations of Code Title IV (public health), subtitle 3
8 (health-related professions), to the attorney general or
9 relevant county attorney. Following an investigation, a board
10 may refer a knowing violation to the attorney general of any
11 state or any other appropriate law enforcement official.
12 The bill allows a professional board to impose a penalty,
13 injunction, restraining order, or conviction for a single
14 violation of a law related to professional regulation without
15 showing evidence of a general course of conduct. The bill
16 requires the department to employ personnel to conduct
17 inspections and investigations and allows the department to
18 employ clerical assistants. The costs of employing personnel
19 shall be paid from funds appropriated to the department. The
20 bill grants investigators the powers and status of peace
21 officers. The bill allows the board or department to issue a
22 cease and desist order and impose a civil penalty not to exceed
23 \$1,000 on an unlicensed person acting in the capacity of a
24 licensed profession.

25 The bill allows the department to administratively close a
26 complaint if the complaint does not allege harm to the public
27 or is referred to another agency or law enforcement. The
28 department may close an investigation if the alleged harm is
29 not substantiated or does not merit discipline.

30 The bill repeals a provision requiring the salary of the
31 executive director of the board of medicine to be established
32 by the governor with the approval of the executive council.
33 The bill strikes a provision requiring the board of medicine
34 to give priority to applications for licensure from applicants
35 whose practice will primarily involve providing services to

1 underserved populations.

2 The bill repeals sections from Code chapter 148 (medicine
3 and surgery and osteopathic medicine and surgery) relating to
4 the voluntary surrender, relinquishment, and reinstatement
5 of a license, temporary licenses, voluntary agreements, and
6 investigators. Similar provisions are added to Code chapter
7 147 (general provisions, health-related professions).

8 The bill requires an applicant for a license to practice as
9 an occupational therapist to submit an application in a manner
10 prescribed by the board of physical and occupational therapy
11 rather than on a written form.

12 The bill repeals a Code section requiring the appointment
13 of an executive director to the board of nursing. The bill
14 changes references in Code chapter 152 (nursing) to licensure
15 by endorsement to instead reference reciprocal licenses.

16 The bill strikes a transition provision for the unlicensed
17 practice of athletic training that is no longer in effect.

18 The bill strikes certain provisions related to the conduct
19 of disciplinary proceedings conducted by the dental board.

20 With respect to a temporary permit issued to a nonresident to
21 practice speech pathology or audiology in this state, the bill
22 strikes a reference to the permittee being qualified "in the
23 opinion of the board".

24 The bill allows a person with a temporary permit to practice
25 as a hearing aid specialist to practice under the supervision
26 of an audiologist.

27 The bill repeals a Code section allowing the board
28 of pharmacy to implement a program to monitor impaired
29 pharmacists, pharmacist-interns, and pharmacy technicians.

30 The bill makes technical corrections regarding discipline
31 against licensed funeral establishments.

32 The bill strikes a provision making the publication of an
33 unlawful announcement to the public regarding barbering and
34 cosmetology arts and sciences a serious misdemeanor.

35 The bill changes the terms "peer review", "peer review

1 records", "peer review reports", and "peer review team"
2 to "attest and compilation services review", "attest
3 and compilation review record", "attest and compilation
4 review report", and "attest and compilation review team",
5 respectively, in Code chapter 542 (public accountants),
6 and makes conforming changes. The bill strikes provisions
7 regarding the composition and operation of the Iowa accountancy
8 examining board (accountancy board) and instead requires the
9 accountancy board to operate as provided in Code chapter 147.
10 The bill also strikes provisions requiring the accountancy
11 board to consider the nature of an offense when considering
12 the denial or revocation of a certificate and controlling
13 the circumstances under which a person who fails a licensure
14 examination may retake the examination.

15 The bill strikes a provision limiting the length of time that
16 the accountancy board may suspend a license to two years. The
17 bill also strikes a provision granting the accountancy board
18 the ability to seek injunctions against unlawful actions and
19 to issue subpoenas and compel the attendance and testimony of
20 witnesses.

21 The bill strikes and repeals provisions relating to the
22 composition, operation, powers, and compensation of the
23 engineering and land surveying examining board (surveying
24 board). The bill also strikes a requirement that the
25 department file a report with the secretary of the surveying
26 board regarding the outcome of examinations administered by the
27 board and allowing applicants to retake the examination.

28 The bill strikes provisions related to the qualifications
29 for licensure as a real estate broker or salesperson. The
30 bill retains requirements that an applicant be at least 18
31 years of age, complete educational and practical requirements,
32 complete an educational course approved by the real estate
33 commission, be subject to a national criminal history check,
34 and pass an examination. The bill strikes a provision keeping
35 the identity of persons taking an examination administered

1 by the real estate commission confidential, and provisions
2 regarding options available to persons who fail an examination.
3 The bill repeals Code sections allowing for the licensing
4 of nonresidents. The bill strikes a provision requiring a
5 licensee of the real estate commission to notify the commission
6 when the licensee is convicted of a crime and requiring the
7 commission to discipline the licensee. The bill also strikes
8 provisions automatically suspending the license of any person
9 granted a license by virtue of the person's association with
10 a broker whose license is revoked, and requiring a licensee's
11 license to be revoked following three violations of Code
12 chapter 543B (real estate brokers and salespersons) within
13 three years.

14 The bill repeals a Code section requiring a person to
15 show that the person is licensed as a real estate broker
16 or salesperson in order to bring or maintain an action for
17 the collection of compensation for the performance of those
18 services. The bill also repeals a Code section requiring a
19 licensee to notify the real estate commission of any change
20 in location of the licensee's principal place of business
21 and requiring the commission to issue a new license for the
22 unexpired term of the original license following the payment of
23 a fee. The bill strikes provisions granting the real estate
24 commission the power to investigate the actions of licensees
25 and persons claiming to be licensees. However, the commission
26 retains the power to assess civil penalties against licensees
27 and persons claiming to be licensees. The bill repeals
28 sections granting the real estate commission the power to
29 convene hearings and relating to the operation of hearings.

30 The bill transfers the authority to inspect real estate
31 broker trust accounts from the real estate commission to the
32 department. The bill repeals Code sections granting the
33 commission the authority to seek injunctive relief, requiring
34 the commission to meet as necessary and annually elect a
35 chairperson, limiting the participation of public members, and

1 prohibiting the disclosure of confidential information. The
2 bill allows hours of experience obtained in any other state to
3 be used to complete the experience requirements for licensure
4 as a real estate appraiser.

5 The bill strikes provisions relating to the composition,
6 activities, and regulation of members of the real estate
7 appraiser examining board, as well as a provision allowing the
8 board to seek injunctions and restraining orders.

9 The bill strikes provisions relating to the composition
10 of the architectural examining board (architect board) and
11 allowing professional associations to recommend potential
12 board members. The bill also strikes provisions requiring the
13 architect board to keep public records relating to the issuance
14 of licenses, requiring the board to hold examinations not
15 less than annually, and prohibiting the board from requiring
16 applicants to include a photograph of the applicant with the
17 application for licensure. The bill strikes a provision
18 making the unlawful practice of architecture a serious
19 misdemeanor, as well as provisions limiting the participation
20 of public members, prohibiting the disclosure of confidential
21 information, and requiring the board to maintain a roster of
22 licensees.

23 The bill strikes provisions concealing the identity of
24 persons taking an examination for licensure as a professional
25 landscape architect, and dictating when a person who has failed
26 the examination may request information about the examination.
27 The bill also strikes Code sections setting procedures for
28 the hearing of complaints by the landscape architect board,
29 making the unlawful practice of landscape architecture a simple
30 misdemeanor, and allowing the imposition of injunctions to
31 restrain persons who violate Code chapter 544B (landscape
32 architects).

33 The bill strikes provisions relating to the composition of
34 the interior design examining board and allowing professional
35 associations to recommend potential board members. The bill

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1 repeals a Code section allowing the interior design examining
2 board to seek injunctions to enjoin violations of Code chapter
3 544C (registered interior designers).